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Table 3-1: Zone Districts and Changes	
Old District Names	New District Names
I. Districts Generally Used Outside of Urban Growth Boundaries	
Rural Zone Districts	
	RS-G (Resource – Government; new district)
RR: Rural/Remote	RR
RS-160 PUD: Resource PUD	RS-160
UFRS-35: Upper Frying Pan Valley Resource	RS-35 (Resource -35 Acre; new district)
LIR: Low Impact Residential	LIR-35
RS-30 PUD: Resource PUD	RS-30
RS-20 PUD: Resource PUD	RS-20
AFR-10: Agricultural/Forestry/Residential	AR-10
AFR-2: Agricultural/Forestry/Residential	AR-2
AFR-1: Agricultural/Forestry/Residential	Deleted – no lands mapped
AF-SKI: Agricultural/Forestry/Ski	SKI-REC
TR-1: Transitional Residential	TR-1
TR-2: Transitional Residential 2	TR-2
UFV: Upper Frying Pan Valley Overlay	FPV-O
B-1: Business	B-1 (Rural Business)
	CD-PUD (Conservation Development PUD)
II. Districts Generally Used Inside Urban Growth Boundaries or Redstone Townsite	
Urban / Suburban Residential Zone Districts	
R-30: Suburban Density Residential	R-30
R-15: Moderate Density Residential	R-15
R-15A: Moderate Density Residential	R-15A
R-15B: Moderate Density Residential	R-15B
R-6: Medium Density Residential	R-6
VR: Village Residential	VR
MHP: Mobile Home Park	MHP
SR: Special Residential	Deleted – no lands mapped
AH: Affordable Housing	AH
AH2/ PUD: Affordable Housing PUD	AH/PUD
AH3/ PUD: Affordable Housing PUD	
AHP/PUD: Affordable Housing Preservation PUD	
AHO/PUD: Affordable Housing PUD Overlay	Deleted – only zoned lands have been annexed
Business and Special Purpose Zone Districts	
AR-1: Accommodation / Recreation	Deleted – no lands mapped
AR-2: Accommodation / Recreation	AC/REC-2
B-2: Business	B-2

Table 3-1: Zone Districts and Changes	
Old District Names	New District Names
VC: Village Commercial	VC
I: Industrial	I (existing lands only)
	P-I (Public-Institutional)
III. Districts Used Anywhere in County	
Special Purpose Zone Districts and Designations	
PUB: Public	PUB (existing lands only)
T: Tourist	T
	PUD (Planned Unit Development–new description)
U: Unclassified	U (existing lands only)

(Code repealed and reenacted (all sections) by [Ord. 014-D-2006, 07-05-06](#); Table 3-1 (part) amended by [Ord. 26-06, 09-13-06](#))

3-10: GENERAL

This section establishes different zone districts available in Pitkin County, the intent of each zone district, and specific requirements that are unique to each zone district. The intent statements should be used in conjunction with other County standards and policies to evaluate proposed development. This section also sets forth any specific standards applicable to development within each district. In addition to complying with such standards, all development in Pitkin County shall comply with the provisions of Chapter 4 (Permitted Uses), Chapter 5 (Dimensional Requirements), Chapter 6 (GMQS and TDRs), Chapter 7 (Development Standards), Chapter 8 (Development Exactions and Impact Fees), as applicable, and all other provisions of this Land Use Code applicable to such land and the proposed development.

3-20: URBAN AND RURAL AREAS

3-20-10: IMPLEMENTATION OF MASTER PLANS

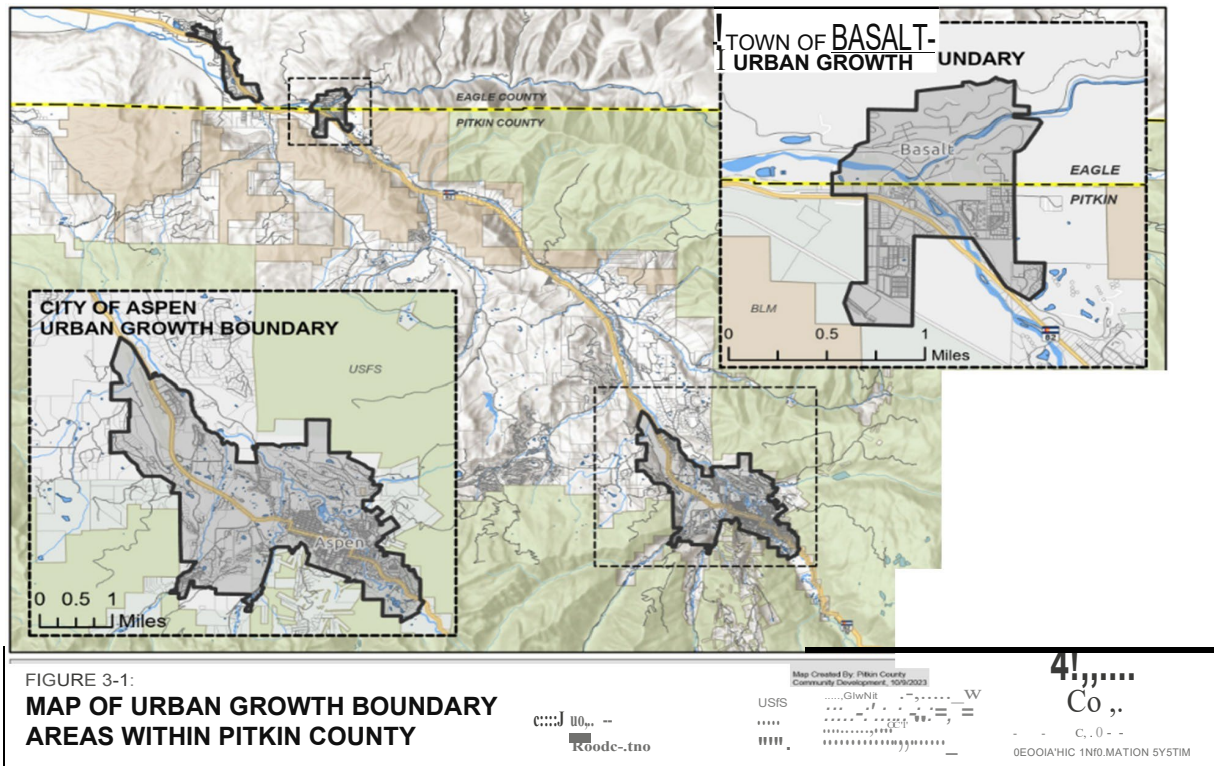
This Land Use Code is intended, in part, to implement the Pitkin County Comprehensive Plan. The preservation of the rural and agricultural character of Pitkin County is a primary goal of the Pitkin County Master Plans. Consistent with this goal, an urban growth boundary has been defined around each of the City of Aspen and the Town of Basalt. Additional urban growth boundaries, or modifications of the existing boundaries, may be adopted in the future. In order to implement the goal of protecting rural and agricultural character, this Land Use Code groups the available zone districts in Pitkin County into those generally intended for use within urban growth boundaries (and the existing townsite of Redstone) and those generally intended for use outside those boundaries. For purposes of this distinction, the unincorporated Townsite of Redstone is treated as a non-Rural Area, and is grouped with areas inside of urban growth boundaries. A map of the adopted urban growth boundaries is shown in Figure 3-1.

3-20-20: URBAN AND RURAL AREAS

Lands located within adopted urban growth boundaries or the townsite of Redstone are sometimes referred to in this Land Use Code as “urban” lands or “urban” areas. Lands located outside of adopted urban growth boundaries and the townsite of Redstone are sometimes referred to in this Land Use Code as “rural” lands or “rural” areas. In those cases where zone districts intended for use inside the urban growth boundaries (or Redstone) have already been mapped outside those boundaries, such zone districts will remain in effect. After the 5th of July, 2006 of this Land Use Code, applications to rezone land outside the urban growth boundaries (and Redstone) to a zone district intended for use inside the urban growth boundaries will not be approved. In general, any proposed development that is required to be reviewed by the State of Colorado site application process because of estimated water requirements or wastewater generation (based on State of Colorado standards) should not be located in a Rural Area of the County.

See map below:

FIGURE 3-1: MAP OF URBAN GROWTH BOUNDARY AREAS WITHIN PITKIN COUNTY



(Code repealed and reenacted (all sections) by [Ord. 014-D-2006,07-05-06](#) Section 3-20-20 amended (Figure 3-1) [Ord. 036-2023, 12-15-2023](#))

3-20-30: TRANSFERABLE DEVELOPMENT RIGHTS

In order to implement the Pitkin County Comprehensive Plan, the development potential from certain lands is sometimes permitted to be transferred to lands elsewhere in the County, under certain conditions. In some circumstances, transferred development rights (TDRs) may be used to create a development right on a parcel that does not have one, and in other cases transferred development rights may be used to expand the size of a house above the base floor area permitted, but within the limits on maximum house size established in Table 5-1. The descriptions of each zone district in this Chapter 3 include information on (a) whether TDRs may be transferred from the district, (b) whether TDRs may be transferred into the district, or within the district, and (c) the purposes for which purchased TDRs may be used in various zone districts. The procedures for transferring development rights are set forth in Chapter 2.

3-30: ZONE DISTRICTS ESTABLISHED

The land within Pitkin County is divided into those zone districts specified in Secs. 3-40 through 3-70 below. Sec. 3-40 identifies those zone districts intended for use outside the urban growth boundaries (and Redstone), and Secs. 3-50 through 3-60 identify zone

districts intended for use inside the boundaries (and Redstone). Sec. 3-70 identifies special purpose zone districts available for use both inside and outside the urban growth boundaries.

3-40: RURAL ZONE DISTRICTS

The following Rural zone districts are hereby established and are intended for use outside of established urban growth boundaries. These zone districts are intended to establish a land use pattern that promotes Pitkin County Comprehensive Plan goals for the rural portions of the County, such as preservation of agricultural/ranch lands and open space; conservation of natural resources, including wildlife habitat, scenic quality, water quality and quantity, and air quality; and protection of historic resources.

3-40-10: RS-G (RESOURCE – GOVERNMENT)

(a) Intent

The RS-G (Resource-Government) zone district is intended to control the future use of lands currently owned by the federal, state, or local governments and currently used for non-development purposes, and to avoid inappropriate development of such lands in the event they are sold, exchanged, or otherwise made available (i.e., by long-term lease) for use by an entity other than the federal, state or local government. It is intended to allow a continuation of the types of uses permitted while in federal, state, or local government ownership and control, but not an intensification or replacement of those uses by other uses of the land. The zone district is intended to allow only very low intensity resource uses on such lands.

(b) Locational Criteria

Lands appropriate for RS-G zoning include those currently in federal, state, or local government ownership and in non-development (i.e. resource) use located outside the urban growth boundaries.

(c) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands located in the RS-G zone district. TDRs may not be purchased from other zone districts and used in the RS-G zone district.

(d) Growth Management Quota System (GMQS)

If lands in the RS-G zone district are transferred to private ownership or put to a non-resource use, such lands shall be subject to the GMQS (see Chapter 6).

3-40-20: RR (RURAL AND REMOTE)

(a) Intent

The RR (Rural/Remote) zone district is intended to: (i) conserve and protect the natural environment and its resources, while allowing for limited recreational uses and limited residential development, (ii) preserve the small scale, low-density backcountry character and lifestyle, (iii) retain undeveloped areas, and (iv) allow for the transfer of development rights to areas that are more appropriate for development. This district accommodates only small new structures and very limited types of development.

(b) Locational Criteria

Areas within the RR zone district should exhibit some or all of the following characteristics:

- (1) Location more than one-half (1/2) mile from winter-maintained public roadways,
- (2) Absence of traditional utility service districts, such as electric, gas and phone,
- (3) Limited availability, or absence of rapid, traditional Pitkin County emergency services,
- (4) Little or no development existing in the surrounding area,
- (5) Presence of natural hazard areas or important environmental or historic resource areas,
- (6) Location within subalpine or alpine ecosystems, and/or location at or above the nine thousand (9,000) foot elevation, and/or
- (7) Location adjacent to U.S. Forest Service or Bureau of Land Management owned properties.

(c) Minor Uses and Activities

- (1) In addition to those uses permitted by right as shown in Table 4-1, the following minor uses are permitted by right in the RR zone district:
 - (a) Shared water systems,
 - (b) Individual water supply systems,
 - (c) Individual sewage disposal systems,

- (d) Above-ground generators in compliance with County regulations,
- (e) Gardens outside of the Activity Envelope up to two thousand five hundred (2,500) square feet in size,
- (f) Fences that meet County wildlife standards and are located outside of critical wildlife habitat and/or migration corridors,
- (g) Termination of noxious weeds.

(2) In addition to those uses permitted by right, as shown in Table 4-1, the following minor uses are permitted in the RR zone district by special review:

- (a) Parking areas that centralize resident parking adjacent to existing roadways in order to allow alternative access to residences beyond that point (i.e., by skiing, hiking, snowmobiling, biking),
- (b) Driveways,
- (c) Helicopter access (for construction use only),
- (d) Extractive operations,
- (e) Fences that meet County wildlife standards and are located in critical wildlife habitat and/or migration corridors,
- (f) Hydro plants (to service a single residence only),
- (g) Extension of utilities (i.e., electricity, water, sewer, telephone and cable), provided that extensions comply with the special review criteria in Secs. 2-30-30(h)(2), and
- (h) Improvements to existing roadways, including, but not limited to, widening, grading and drainage improvements.

(d) Legally Created Structures

(1) Legally created structures in the RR zone district, existing prior to January 2nd 1996, may be retained, subject to compliance with one (1) of the following criteria:

- (a) If the existing structure contains a dwelling unit, a new structure containing a dwelling unit may be built, provided that

either the new or the existing unit is deed-restricted for occupancy by residents pursuant to the employee housing guidelines. Year-round occupancy of the unit shall not be required. The deed-restricted unit shall be exempt from GMQS pursuant to Sec. 6-30-40(b).

(b) If the existing structure does not contain a dwelling unit, then a new structure containing a dwelling unit may be built, provided that the existing structure is retained as an accessory structure and accommodates accessory uses only. In this case, the existing structure may not be used for either seasonal or year-round dwelling purposes.

(c) If the existing structure contains a dwelling unit, then, in lieu of constructing a new structure with an additional dwelling unit, one (1) transferable development right may be severed subject to approval and compliance with criteria and standards in Sec. 2-40-30 and 6-70.

(e) Prohibited Uses

In addition to all uses that are not specifically listed as uses allowed by right or by special review (including those listed in Table 4-1 or in subsections (c) or (d) above, the following uses are specifically prohibited in the RR zone district:

- (1) Winter maintenance of roadways and driveways, except for access to residential development sites approved prior to January 2, 1996, that have been historically and continually served by privately winter-maintained driveways or roadways, and except if the prohibition on plowing of limited service area roads is varied by the BOCC pursuant to the Asset Management Plan.
- (2) New accessory structures, other than those allowed by special review,
- (3) New roadways,
- (4) Disturbance of all living native vegetation outside of the Activity Envelope, except as required by County wildfire regulations for wildfire mitigation, provided that one (1) standing dead tree per five (5) acres shall remain undisturbed, if present, for bird of prey perching and nesting and for songbird perching and feeding (this provision shall not prohibit the general gathering of firewood from deadfall, nor the grazing of animals that have historically grazed the parcel prior to January 2, 1996), and
- (5) Caretaker and employee dwelling units.

- (6) Helicopter and Fixed Wing Aircraft Loading and Unloading
- (7) Short-Term Rental

(f) Transferable Development Rights (TDRs)

TDRs may be severed and sold from lands in the RR zone district pursuant to Secs. 6-70 and 2-40-30, and/or if the property is designated on the Pitkin County Historic Register. TDRs may not be purchased and used in the RR zone district from the RR or other zone districts.

(g) Growth Management Quota System (GMQS)

Lands in the RR zone district are subject to the GMQS (see Chapter 6), except as noted in subsection (d) above.

(Code repealed and reenacted (all sections) by [Ord. 014-D-2006,07-05-06](#) Section 3-40-20 amended (in part) [Ord. 011-02, 02-23-2002](#); amended (in part) [Ord. 027-2024, 12-04-2024](#).)

3-40-30: RS-160 (RESOURCE-160 ACRE)

(a) General Intent

The RS-160, RS-35, LIR, RS-30, RS-20, AR-10 zone districts all share the following basic intent, which is to:

- (1) Permit low density, single family residential development and customary accessory uses, while recognizing that natural hazards, wildlife areas, limited utility services, roads, schools, and/or other facilities may constitute constraints on the realization of zoned density;
 - (2) Discourage sprawl;
 - (3) Encourage clustering of development, preservation of open space and promotion of efficient utility services;
 - (4) Preserve agricultural operations and environmental resources; and
 - (5) Preserve the rural visual quality and character while permitting carefully sited low density development.
- (6) More specific intent statements for each of the listed zone districts are set forth in the subsections below.

(b) RS-160 Intent

The RS-160 (Resource--160 Acre) zone district is intended to protect natural resources and agricultural uses while allowing some very low density development.

(c) When PUD Required

When a rezoning to the RS-160 zone district occurs, or when land within the RS-160 zone district is subdivided or otherwise divided into separate parcels through a subdivision exemption pursuant to C.R.S. 30-28-110, a PUD must be prepared pursuant to Sec. 2-40-50. The criteria for approval of a PUD are listed in Sec. 3-70-30(i).

(d) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands in the RS-160 zone district, unless the lot or parcel is determined to be constrained or visually constrained pursuant to Sec. 6-70-40, or is designated on the Pitkin County Historic Register, or is approved as a limited development conservation parcel pursuant to Sec. 6-70-40. TDRs may be purchased from other zone districts and used in the RS-160 zone district.

(Code repealed and reenacted (all sections) by [Ord. 014-D-2006 07-05-06](#), Section 3-40-30 amended (in part) [Ord. 011-2022, 02-23-2022](#))

3-40-40: RS-35 (RESOURCE-35 ACRE)

(a) Intent

The RS-35 (Resource-35 Acre) zone district is intended to: preserve the open character of land divided into tracts between 35 and 160 acres, promote land uses consistent with the applicable Pitkin County Master Plan, and prevent inappropriate development on such tracts, regardless of whether such lands have been formally subdivided. The zone district is intended to allow only very low impact resource or residential uses on such lands. The zone district includes lands previously zoned UFRS-35, and the regulations applicable to such lands remain unchanged.

(b) When PUD Required

When a rezoning to the RS-35 zone district occurs a PUD must be prepared pursuant to Sec. 2-40-50. The criteria for approval of a PUD are listed in Sec. 3-70-30(i).

(c) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands in the RS-35 zone district, unless the lot or parcel is determined to be constrained or visually constrained pursuant to Sec. 6-70-40 or is designated on the Pitkin County Historic Register, or is approved as a limited development conservation parcel pursuant to Sec. 6-70-40. TDRs may be purchased and used in this zone district for the purposes of (a) increasing the maximum size of an existing dwelling within the limits on final maximum floor area established in Table 5-1, or (b) creating a new development right on a legal parcel.

Lands in the RS-35 zone district are subject to the GMQS (see Chapter 6).

(Code repealed and reenacted (all sections) by [Ord. 014-D-2006, 07-05-06](#); § 3-40-40 (part) amended [Ord. 038-06, 12-06-06](#)); § 3-40-40 (part) amended [Ord. 29, 2023, 09-13-2023](#);

3-40-50: LIR-35 (LOW IMPACT RESIDENTIAL-35 ACRE)

(a) Intent

The LIR-35 (Low Impact Residential-35 Acre) zone district is intended to allow low density, low intensity residential development. The principal land use in this zone district is residential, with typically associated accessory uses. The zone district seeks to limit the intensity of development to moderate sized buildings and structures, thereby minimizing the impacts of construction, servicing and occupation of the residences to preserve the rural character of the land, protect onsite natural resources, minimize employment generation associated with more intense development, and otherwise limit the demand for public services. Lands appropriate for this zone district are properties that are rural in character with environmental or agricultural resources, or environmental hazards or properties otherwise sensitive to intensive development.

(b) Locational Criteria

The LIR-35 zone district is intended to be used within the Brush Creek/Owl Creek Area, and in other areas located no further from the Aspen Urban Growth Boundary than the Brush Creek Area in which the use of the LIR-35 zone district would create a reduction in overall development density.

(c) Zone District-Specific Regulations

In the LIR-35 zone district, only one (1) principal allowed use may be approved or established at any one (1) time on any one (1) property, lot or parcel.

(d) Cluster Option

In the LIR-35 zone district, a cluster option is available. Applications for a cluster development option shall be reviewed through the LIR/TR-2 cluster subdivision process. The following standards shall apply:

(1) Eligibility

The application must include the entirety of the unsubdivided parcel and adjacent parcels held in common ownership as configured on January 16, 2000.

(2) Minimum Lot Size and Maximum Allowed Floor area

Minimum lot size, maximum allowed floor area, and other dimensional requirements shall comply with the description of the cluster option in Table 5-1.

(3) Caretaker Dwelling Unit

A caretaker dwelling unit may be constructed consistent with the applicable provisions of this Land Use Code. The size of the caretaker dwelling unit shall be included in the calculation of total floor area.

(4) Maximum Height and Setbacks

Maximum heights of principal and accessory structures and setbacks of all structures may be modified through the PUD approval process, consistent with the intent of the LIR-35 district.

(5) Siting

All buildings and structures shall be subject to Site Plan Review pursuant to Sec. 2-30-20(g)(2) and 7-10-50.

(6) Deed Restriction for Undeveloped Land

All land outside of the development areas designated in the cluster option Activity Envelope shall be designated as preservation areas in the approved Site Plan. These preservation areas shall be preserved in perpetuity by conservation easement or covenant approved by the County Attorney and the Community Development Director, which at a minimum shall restrict the property from future development and subdivision. Conservation easements may be granted prior to the cluster option application and approval process. If land has been preserved through a conservation easement, that land may still be considered as part of a cluster option application and approval.

(7) Vested Rights

Cluster option approvals pursuant to this zone district shall be granted vested property rights valid for twenty (20) years.

(e) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands located in the LIR-35 zone district, unless the lot or parcel is determined to be constrained or visually constrained pursuant to Sec. 6-70-40 or if the property is designated on the Pitkin County Historic Register. TDRs may not be purchased from other zone districts and used in the LIR-35 zone district except as noted in Table 5-1 in conjunction with a cluster development option.

(f) Growth Management Quota System (GMQS)

Lands in the LIR-35 zone district are subject to the GMQS unless the cluster development option is used, in which case the development is exempt from the GMQS pursuant to Sec. 6-30-80.

(Code repealed and reenacted (all sections) [Ord. 014-D-2006, 07-05-06](#); § 3-40-40 (part) amended [Ord. 038-06, 12-06-06](#))

3-40-60: TR-1 (TRANSITIONAL RESIDENTIAL-1)

(a) Intent

The TR-1 (Transitional Residential-1) zone district allows for low density, low intensity residential development consistent in character with historic mining. The principal land use in this district is residential with typically associated accessory uses. The purpose of the district is to allow residential use that minimizes impacts of construction, servicing and occupation of the residences; to decrease employment generation that would occur with more intense development; to otherwise limit the demand for public services; and preserve the character of lands in this zone district. The zone district seeks to limit the intensity and scale of development to small sized buildings and structures, as a transition from high density and intensity within the Aspen Urban Growth Boundary (UGB) to the Rural and Remote (RR) area where zoning reflects a low intensity of use.

(b) Locational Criteria

Lands appropriate for the TR-1 zone district are those near the boundary of the Aspen Urban Growth Boundary and recommended for rezoning in the East of Aspen/Independence Pass Master Plan. Land appropriate for this zone district designation are those properties near the boundary of the Aspen Urban Growth

Boundary that are transitional in character, which may have or may be associated with environmental or ecological resources, environmental hazards, areas of state interest, scenic significance or properties otherwise sensitive to overly intensive development.

(c) Transferable Development Rights (TDRs)

TDRs may be severed and sold from lands in the TR-1 zone district pursuant to Secs. 6-70 and 2-40-30 and/or if the property is designated on the Pitkin County Historic Register. TDRs may not be purchased from other zone districts and used in the TR-1 zone district.

(d) Growth Management Quota System (GMQS)

Lands in the TR-1 zone district are subject to the GMQS (see Chapter 6).

(e) Prohibited Uses

In addition to all uses that are listed in Table 4-1, the following uses are specifically prohibited in the TR-1 zone district:

(1) Short-Term Rental

(Code repealed and reenacted (all sections) [Ord. 014-D-2006, 07-05-06](#); §3-40-60 amended (in part) [Ord. 027-2024, 12-04-2024](#)

3-40-70: TR-2 (TRANSITIONAL RESIDENTIAL-2)

(a) Intent

The TR-2 (Transitional Residential-2) zone district allows for low density, low intensity residential development. The principal land use in this district is residential with typically associated accessory uses. The purpose of the district is to allow residential use that minimizes impacts of construction, servicing and occupation of the residences, to decrease employment generation that would occur with more intense development; to otherwise limit the demand for public services; and to preserve the character of lands in this zone district. The zone district seeks to limit the intensity of development to moderate sized buildings and structures, as a transition from high density and intensity within the Aspen Urban Growth Boundary (UGB) to the Rural and Remote (RR) area where zoning reflects a low intensity of use.

(b) Locational Criteria

Lands appropriate for the TR-2 zone district are those near the boundary of the Aspen Urban Growth Boundary and that are transitional in character; which may

have or may be associated with environmental or ecological resources, environmental hazards, areas of state interest, scenic significance or properties otherwise sensitive to overly intensive development.

(c) Property Subject to More Than One Zoning Designation

This provision applies to only those properties that are subject to more than one zone district and at least one of the zone districts is TR-2.

(1) If development occurs in an area of the property not zoned TR-2, pursuant to a PUD approval, then the area of the entire property, including the portion zoned TR-2, shall be considered for density purposes according to the density allowed in the area to be developed.

(2) If development occurs in an area of the property zoned TR-2, then the provisions and restrictions of the TR-2 zone shall control the development.

(d) Cluster Option

In the TR-2 zone district, a cluster option is available. Applications for a cluster development option shall be reviewed through the LIR/TR2 cluster subdivision process, which may be completed simultaneously. The following standards shall apply:

(1) Eligibility

The application must include the entirety of the unsubdivided parcel and adjacent parcels held in common ownership as configured on January 16, 2000.

(2) Minimum Lot Size and Maximum Allowed Floor Area

Minimum lot size, maximum allowed floor area, and other dimensional requirements shall comply with the description of the cluster option in Table 5-1.A.

(3) Maximum Height and Setbacks

Maximum heights of principal and accessory structures and set backs of all structures may be modified through the approval process, consistent with the intent of the TR-2 zone district.

(4) Siting

All buildings and structures shall be subject to Site Plan Review pursuant to Secs. 2-30-20(g)(2) and 7-10-50.

(5) Deed Restriction for Undeveloped Land

All land outside of the development areas designated in the cluster option Activity Envelope shall be designated as preservation areas in the approved Site Plan . These preservation areas shall be preserved in perpetuity by conservation easement or covenant approved by the County Attorney and the Community Development Director, which at a minimum shall restrict the property from future development and subdivision. Conservation easements may be granted prior to the cluster option application and approval process. If land has been preserved through a conservation easement, that land may still be considered as part of a cluster option application and approval.

(6) Vested Rights

Cluster option approvals pursuant to this zone district shall be granted vested property rights valid for twenty (20) years.

(e) Transferable Development Rights (TDRs)

TDRs may be severed and sold from lands in the TR-2 zone district pursuant to Secs. 6-70 and 2-40-30 and/or if the property is designated on the Pitkin County Historic Register. TDRs may be purchased and used in the TR-2 zone district, but only if the Sending Site from which the TDRs are transferred is located within the TR-2 zone district, and only for the purpose of increasing the maximum size of an existing dwelling within the limits on final maximum floor area established in Table 5-1, pursuant to Secs. 6-70 and 2-40-30, and as set forth in Table 2-1.

(f) Growth Management Quota System (GMQS)

Lands in the TR-2 zone district are subject to the GMQS (see Chapter 6).

(g) Prohibited Uses

In addition to all uses that are listed in Table 4-1, the following uses are specifically prohibited in the TR-2 zone district:

(1) Short-Term Rental

(Code repealed and reenacted (all sections) [Ord. 014-D-2006, 07-05-06](#); § 3-40-83-40-10 amended (part) [Ord. 029-2023, 09-18-2023](#); Section 3-40-70 amended (in part) [Ord. 027-2024, 12-04-2024](#)

3-40-80: RS-30 (RESOURCE-30 ACRE)

(a) Intent

The general intent statement included in Sec. 3-40-30 applies to the RS-30 zone district.

(b) Locational Criteria

The RS-30 zone district is intended to be applied primarily in the Crystal River Valley and the Snowmass-Capitol Creek area, but may also be appropriate where other lands share similar physical characteristics with those areas. The RS-30 zone district should generally not be applied when the result would be to increase the potential development density outside of the urban growth boundaries.

(c) When PUD Required

When a rezoning to the RS-30 district occurs, or when land within the RS-30 zone district is subdivided or otherwise divided into separate parcels through a subdivision exemption pursuant to C.R.S. 30-28-110, a PUD must be prepared pursuant to Sec. 2-40-50. The criteria for approval of a PUD are listed in Sec. 3-70-30(i).

(d) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from parcels of land in the RS-30 zone district, unless the lot or parcel is determined to be constrained or visually constrained pursuant to Sec. 6-70-40 or is designated on the Pitkin County Historic Register or is approved as a limited development conservation parcel pursuant to Sec. 6-70-40. TDRs may be purchased and used in this zone district for the purposes of (a) increasing the maximum size of an existing dwelling within the limits on final maximum floor area established in Table 5-1, or (b) creating a new development right on a legal parcel.

(e) Growth Management Quota System (GMQS)

Lands in the RS-30 zone district are subject to the GMQS (see Chapter 6).

(Code repealed and reenacted (all sections) [Ord. 014-D-2006, 07-05-06](#); § 3-40-80 amended (part) [Ord. 029-2023, 09-18-2023](#))

3-40-90: RS-20 (RESOURCE-20 ACRE)

(a) Intent

The general intent statement included in Sec. 3-40-30 applies to the RS-20 zone district. The RS-20 PUD (Resource Planned Unit Development-20 Acre) zone district is intended to apply to areas closer to urban growth boundaries than those zoned RS-30.

(b) Locational Criteria

The RS-20 zone district is intended to be applied primarily in the Woody Creek area, but may also be appropriate where other lands share similar physical characteristics with those areas. The RS-20 zone district should generally not be applied when the result would be to increase the potential development density outside of the urban growth boundaries.

(c) When PUD Required

When a rezoning to the RS-20 zone district occurs, or when land within the RS-20 zone district is subdivided or otherwise divided into separate parcels through a subdivision exemption pursuant to C.R.S. 30-28-110, in connection with an application for subdivision, a PUD must be prepared pursuant to Sec. 2-40-50. The criteria for approval of a PUD are listed in Sec. 3-70-30(i).

(d) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from parcels of land in the RS-20 zone district, unless the lot or parcel is determined to be constrained or visually constrained pursuant to Sec. 6-70-40 or is designated on the Pitkin County Historic Register or is approved as a limited development conservation parcel pursuant to Sec. 6-70-40. TDRs may be purchased and used in this zone district for the purposes of (a) increasing the maximum size of an existing dwelling within the limits on final maximum floor area established in Table 5-1, or (b) creating a new development right on a legal parcel.

(Code repealed and reenacted (all sections) by [Ord. 014-D-2006, 07-05-06](#); § 3-40-80 (part) amended [Ord. 038-06, 12-06-06](#); § 3-40-90 amended (part) [Ord. 029-2023, 09-18-2023](#)

3-40-100: AR-10 (AGRICULTURAL/ RESIDENTIAL-10 ACRE)

(a) Intent

The AR-10 district is intended to accommodate small scale agricultural activities and large-lot residential development that maintains the rural character and appearance of the land. Because few agricultural activities can be accomplished on a lot of ten (10) acres, the majority of such land will be used for residential uses. Residential development should be clustered and/or grouped at the edges of valleys or wooded areas in order to minimize the visual disruption of the natural landforms and to avoid the appearance of unrelated homes spread randomly across the land.

(b) Locational Criteria

Lands zoned AR-10 are located primarily adjacent to the municipalities of Aspen and Basalt, and along the Highway 82 corridor and in scattered sites elsewhere in the County. The AR-10 zone district could be appropriate for use outside of urban growth boundaries where the applicable Pitkin County Master Plan calls for an increase in residential density, or for residential development on ten (10) acre parcels.

(c) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from parcels of land in the AR-10 zone district, unless the lot or parcel is determined to be constrained or visually constrained pursuant to Sec. 6-70-40 or is designated on the Pitkin County Historic Register or is approved as a limited development conservation parcel pursuant to Sec. 6-70-40. TDRs may be purchased and used in this zone district for the purposes of (a) increasing the maximum size of an existing dwelling within the limits on final maximum floor area established in Table 5-1, or (b) creating a new development right on a legal parcel.

(d) Growth Management Quota System (GMQS)

Lands in the AR-10 zone district are subject to the GMQS (see Chapter 6).

(Code repealed and reenacted (all sections) by [Ord. 014-D-2006, 07-05-2026](#); § 3-40-90 (part) amended [Ord. 038-06, 12-06-06](#)); § 3-40-100 amended (part) [Ord. 029-2023, 09-18-2023](#))

3-40-110: AR-2 (RESIDENTIAL-2 ACRE)

(a) Intent

The AR-2 (Residential-2 Acre) zone district is intended to provide for a moderate density, transition zone between moderate and low density residential land uses. This zone district primarily contains existing housing concentrations with densities exceeding those in surrounding areas. It is not intended to be used to accommodate new development in the Rural Area of the County.

(b) Locational Criteria

The existing lands in the AR-2 zone district are generally located along the valley floor located between the County's development centers and its rural, open land area. Lands should only be rezoned to the AR-2 zone district if the lands are located within an urban growth boundary and the rezoning would result in an increase in development density consistent with the Pitkin County Comprehensive Plan.

(c) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands located in the AR-2 zone district, unless the lot or parcel is determined to be constrained or visually constrained pursuant to Sec. 6-70-40 or if the property is designated on the Pitkin County Historic Register. TDRs may be purchased and used in the AR-2 zone district for the purposes of (a) increasing the maximum size of an existing dwelling within the limits on final maximum floor area established in Table 5-1, or (b) creating a new development right on a legal parcel located within the Aspen Urban Growth Boundary, pursuant to Secs. 6-70 and 2-40-30, and as set forth in Table 2-1.

(d) Growth Management Quota System (GMQS)

Lands in the AR-2 zone district are subject to the GMQS (see Chapter 6).

3-40-120: SKI-REC (SKI-RECREATION)

(a) Intent

The SKI-REC (SKI-RECreation) zone district is intended for lands that are used for downhill and cross-country skiing and other uses permitted by a Federal or other public agency, such as grazing, hunting, and passive and other recreational uses. The district also accommodates affordable housing.

(b) Master Plan Required

An approved SKI-REC master plan is required for any development in the SKI-REC zone district. The master plan shall address all existing facilities and all proposed development, and shall be consistent with Pitkin County Comprehensive Plan. All standards, requirements, and procedures for the review and adoption of master plans are found in Sec. 2-40-100, and lists of permitted uses that may be included in SKI-REC master plans are found in Chapter 4.

(c) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands located in the SKI-REC zone district. TDRs may not be purchased from other zone districts and used in the SKI-REC zone district.

(d) Growth Management Quota System (GMQS)

Lands in the SKI-REC zone district are subject to the GMQS (see Chapter 6).

(Code repealed and reenacted (all sections) by [Ord. 014-D-2006, 07-05-2006](#); § 3-40-100 (part) amended [Ord. 038-06, 12-06-06](#))

3-40-130: FPV-O (FRYING PAN VALLEY OVERLAY)

(a) Intent

The FPV-O (Frying Pan Valley Overlay) zone district is intended to implement the recommendation of the Upper Frying Pan Valley Master Plan. The theme of the Master Plan is the preservation of the rural and recreational nature of the Frying Pan Valley, while at the same time sustaining the viability of its unique community. Where the County's Official Zone District Map designates a property as being within the Frying Pan Valley Overlay, then the provisions of this Overlay, including its use limitations and dimensional requirements, shall supersede those of the underlying zone district. The Overlay shall apply to lands in the Upper Frying Pan Valley zoned RS-30, RS-35, RS-160, B-1 and AR-2. As an overlay district, the FPV-O district applies in addition to any underlying zone district applied to the property, and in the case of conflict between the provisions of the FPV-O district and the provisions of any underlying zone district, the provisions of the FPV-O district shall govern.

(b) Locational Criteria

Lands included in the FPV-O district are those located within the Upper Frying Pan Valley, as those lands are defined in the Upper Frying Pan Valley Comprehensive Plan.

(c) Additional Review Criteria

When the County is evaluating an application for a special review use, or for a subdivision or PUD within the Frying Pan Valley Overlay, the following additional criteria shall be considered:

- (1) The proposed development shall be compatible with the unique rural and recreational character of the Upper Frying Pan Valley.
- (2) The proposed development shall be consistent with the land use goals of the Upper Frying Pan Valley Master Plan, which are: (a) to limit residential development in the Valley to the maximum extent possible; (b) to support commercial development that provides quality growth and serves the community without creating a financial burden; and (c) to preserve the land in the Valley primarily for agricultural and recreational purposes. The proposed development shall also be consistent with the environmental and scenic goals of the Master Plan, which are to protect the water supply, air quality, wildlife areas, riparian areas, and wetland areas of the Upper Frying Pan Valley.
- (3) New residences and access roads shall comply with the provisions of all applicable standards in Chapter 7 and shall not be located in meadows, wetlands, riparian habitat areas, and critical wildlife habitat. Development shall not occur on steep slopes as defined under the potentially unstable slope standards in this Land Use Code, or on ridgelines, as viewed from the Frying Pan River Road. Development is encouraged to be clustered near the Frying Pan River Road, to preserve continuous tracts of land in open space.

(d) Transferable Development Rights (TDRs)

Transferable development rights are those applicable to the underlying zone district.

(e) Growth Management Quota System (GMQS)

The applicability of GMQS (see Chapter 6) is subject to those provisions applicable to the underlying zone district.

3-40-140: B-1 (RURAL BUSINESS)

(a) Intent

The B-1 (Small Business) zone district applies to pre-existing commercial properties limited to the Woody Creek Restaurant and Store, the Aspen Village Quick Mart and those existing properties in Meredith and Thomasville. This rural commercial zone district acknowledges the existence of these commercial properties for limited, small-scale operations that are consistent with the Pitkin

County Comprehensive Plan and that are oriented primarily to the local population in the Rural Areas.

(b) Locational Criteria

B-1 districts shall be located consistent with recommendations for the establishment or preservation of such uses in the Pitkin County Comprehensive Plan, and shall generally be for preservation of small scale existing commercial activities

(c) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands located in the B-1 zone district. TDRs may not be purchased and used in the B-1 zone district from other zone districts.

(d) Growth Management Quota System (GMQS)

Lands in the B-1 zone district are subject to the GMQS (see Chapter 6).

3-40-150: UPPER MAROON CREEK OVERLAY ZONE DISTRICT (“UMC-O”)

(a) Intent

The Upper Maroon Creek Overlay Zone District (“UMC-O”) is intended to implement the recommendations of the Maroon Creek Caucus Master Plan. A fundamental premise of the Master Plan is that Upper Maroon Creek is the entryway to the Maroon Bells/Snowmass Wilderness Area, an area which contains some of the most spectacular natural scenery in all of Colorado. The key natural resources of this area include the water resources of Maroon Creek and its tributaries; the associated sensitive wetlands and riparian habitats; and the incomparable scenic beauty of the Maroon Bells, Pyramid Peak and surrounding mountains.

The Maroon Creek Master Plan recommends that Upper Maroon Creek be designated as a critical scenic area of Pitkin County, requiring a more stringent set of scenic view protection standards to supplement the Countywide scenic view protection standards, so as to ensure the area continues to be an unblemished scenic corridor and entryway to the National Forest lands. It is the intent of the UMC-O to implement this recommendation through the adoption of additional scenic view protection standards which apply solely within the boundaries of the Maroon Creek Caucus. It is also the intent of the UMC-O to implement a final maximum floor area of 5,750 square feet to ensure that new residences which are built in Upper Maroon Creek are modestly- sized and compatible in character with surrounding development.

(b) Locational Criteria

The UMC-O zone district shall apply to all lands within the boundaries of the Maroon Creek Caucus zoned AR-10, PUB, RR and SKI-REC. As an overlay district, the UMC-O zone district applies in addition to any underlying zone district applied to the property. In the case of a conflict between the provisions of the UMC-O zone district and the provisions of any underlying zone district the more restrictive standards shall apply.

(c) Scenic View Protection Standards

Upper Maroon Creek is a special scenic corridor in Pitkin County. As a driver, cyclist or pedestrian proceeds past Aspen Highlands and enters into Upper Maroon Creek, there is a clear sense of leaving the urban environment and entering a rural setting. The road surface narrows and winds, the road's side slopes get steeper and the land becomes more heavily forested. Residential development becomes less visually prominent as homes are set into thick forest groves or are located distant from (or sometimes well above) the road, allowing natural features to dominate one's perception.

Just before the National Forest boundary, the road corridor opens back up at the T-Lazy-7 Ranch, a hub for summer and winter recreational activities and a treasured feature of Upper Maroon Creek. Here the Ranch's commercial and residential buildings are visible from the road, set within expansive meadows, lawns and old growth trees. Its ranch compound layout is part of the historic character of Upper Maroon Creek but also sets T-Lazy-7 apart from other properties in Upper Maroon Creek. The visibility of its commercial and residential buildings and its agricultural operations is not only a part of the valley's unique character, but is the result of an historic easement granted to Pitkin County through the T-Lazy-7 Ranch for public access to the Maroon Bells.

The transition from urban to rural to wilderness constitutes the unique visual character of Upper Maroon Creek which is highly valued by residents of and visitors to the area. In order to preserve the unique visual character of this area and entrance to the National Forest, it is necessary to implement scenic view protection standards which apply solely to Upper Maroon Creek. These standards shall supplement the standards of Section 7-20-120, Scenic View Protection, which apply throughout Pitkin County.

Therefore, whenever development is proposed on lands zoned UMC-O which would require review pursuant to Sec. 7-20-120, Scenic View Protection, the following standards shall apply to that development in addition to the standards of Sec. 7-20-120.

In the case of a conflict between the scenic view protection standards of the UMC-O and the provisions of Sec. 7-20-120 the more restrictive standards shall apply.

- 1) Residential development should not dominate the landscape, but instead should be located and designed to blend with the natural features of the site so as to minimize its visual impact. Design techniques which should be used to accomplish this include:
 - a) Residential development should be located in such a manner as to minimize its visibility or prominence as viewed from Maroon Creek Road. The least visible or prominent location shall be determined by evaluating the physical characteristics of the subject property. For some properties the least visible or prominent location may be found in the backdrop, at the greatest possible distance on the site from Maroon Creek Road. For other properties there may be an opportunity to utilize natural topography or the presence of thick natural vegetation to minimize the visibility or prominence of the proposed residential development.
 - b) On sites having a mature tree canopy, an appropriate technique for screening would be for residential development to be nestled within the existing tree canopy, utilizing those trees as a natural screen. Where trees are not present or trees must be removed to locate the residence, then native trees and shrubs should be planted in natural-appearing clusters and similar natural configurations to effectively screen the residence.

New plantings should be installed in such a manner as to maintain public views from Maroon Creek Road into open meadows or other natural features.
 - c) Residential development should be located and designed to fit with the natural topography. Driveways should be designed to follow natural contours. Existing grades and topographic features may be utilized to help to screen residential development. Making significant changes to the natural grade in order to screen residential development or extensively manipulating the natural topography to install or improve a driveway is strongly discouraged.
 - d) Residential development styles which are encouraged include (but are not limited to) ranch-style (primarily one-story) structures, structures which have articulated roof lines and building facades, and structural forms which effectively break the mass of the building down into a series of smaller elements.
- 2) Compliance with the standards for scenic view protection review in the UMC-

O shall be a basic determinant of whether a property shall be allowed to develop to the maximum gross floor area of 5,750 square feet. Residential developments which are unable to fully comply with these Scenic View Protection standards may be limited to a lesser floor area in order to better achieve such compliance.

- 3) Commercial structures need not necessarily be located in such a manner as to minimize their visibility or prominence as viewed from Maroon Creek Road. Commercial structures may instead be located in closer proximity to Maroon Creek Road than residential development if that is important for the structure's function or if the structure is a replacement for an existing structure, although such structures should still comply with the applicable underlying zone district setbacks. New commercial structures should be screened or buffered from view from Maroon Creek Road using existing native vegetation and by planting native vegetation in natural-appearing clusters to the extent practicable or appropriate to the particular use and site aesthetics, provided such plantings maintain public views from Maroon Creek Road into open meadows or other natural features
- 4) An existing residential or commercial structure which is located or otherwise designed in such a manner that it does not comply with these scenic view protection standards may be replaced without necessarily being brought into compliance with these standards when the replacement structure is proposed to have the same or reduced mass and scale as the existing structure.
- 5) Development in the PUB (Public) zone district within the UMC-O shall comply with the standards applicable to residential development in sub-section C.1 above to the extent to which that is practicable. Because the front yard setback in the PUB zone district is rather modest thirty (30) feet, an applicant is encouraged to exceed the minimum front yard setback in order to minimize the visibility of the development from Maroon Creek Road. Compliance with the standards for scenic view protection review in the UMC-O shall be a basic determinant of whether a property shall be allowed to develop to the maximum floor area allowed in the PUB zone district.
- (6) Any new ski lift installations or replacement/upgrading/modification of existing ski lifts within the SKI-REC zone district shall comply with the following limitations.
 - a. No lift alignment shall be permitted to span Maroon Creek Road within the UMC-O unless the applicant demonstrates that there is no practicable or permissible alternative lift alignment which is located outside of the UMC-O which could achieve the purpose of the proposed lift as detailed by the ski area operator and approved by the Board of County Commissioners..

b. There shall be no permanently affixed night-time lighting of any ski lift, or any structure which is accessory to a ski lift, which would be visible from Maroon Creek Road within the UMC-O. Emergency or temporary lighting which is necessary for lift maintenance/lift repair and similar essential ski area functions, and periodic temporary or special events which are approved by the County shall be exempt from this limitation. Exterior lighting of an entry/walkway to a structure which is necessary for the safety of guests, employees and other persons, or which is required by the Building Code or other adopted County Codes, or by other regulatory authorities, shall also be exempt from this limitation.

c. The ski lift shall be installed in such a manner to the maximum extent practicable as to not project above a ridgeline as viewed from Maroon Creek Road within the UMC-O.

- (7) All utility extensions associated with new development or re-development shall be installed underground. To the extent practicable, any existing utilities which are above ground should be placed underground as part of any new development or re-development.

(e) House Size Limitations

The final maximum floor area for all residential development on any lot or parcel zoned UMC-O shall be 5,750 square feet, as set forth in Note 11 in Table 5-1.A of this Land Use Code.

(f) Transferable Development Rights (TDRs)

TDRs may be purchased and used in this zone district for the purposes of (a) increasing the maximum size of an existing dwelling within the limits on final maximum floor area established in Table 5-1, or (b) creating a new development right on a legal parcel.

A lot or parcel zoned UMC-O which is determined to be constrained, pursuant to Section 6-70-40 (a)(7) or (a)(8), may be designated as a TDR sending site. Parcels zoned RR are designated sending sites per Section 6-70-40 of the Land Use Code.

(g) Growth Management Quota System (GMQS)

Lands in the UMC-O zone district are subject to the GMQS. However, a GMQS allotment shall not be utilized to exceed the final maximum floor area of 5,750 square feet for the UMC-O zone district.

(Code repealed and reenacted (all sections) by [Ord. 014-D-2006, 07-05-06](#); § 3-150 added [Ord. 011-2020, 3-25-2020](#)); § 3-40-150 amended (part) [Ord. 029-2023, 09-18-2023](#)

3-40-160: BUGB-O (BASALT URBAN GROWTH BOUNDARY OVERLAY) ZONE DISTRICT

(a) Intent

The BUGB-O (Basalt Urban Growth Boundary Overlay) zone district is intended to implement a final maximum floor area limitation of 5,750 square feet for residential development to ensure that new residences which are built in unincorporated Pitkin County lands within the boundaries of the Basalt Urban Growth Boundary support and maintain the transition from urban to rural character within unincorporated Pitkin County.

(b) Location Criteria

The BUGB-O zone district shall apply to all unincorporated Pitkin County lands within the boundaries of the Basalt Urban Growth Boundary. As an overlay district, the BUGB-O zone district applies in addition to any underlying zone district applied to the property. In the case of a conflict between the provisions of the BUGB-O zone district and the provisions of any underlying zone district the more restrictive standards shall apply.

(c) Final Maximum Floor Area

The final maximum floor area for all residential development on any lot or parcel zoned BUGB-O in the Basalt Urban Growth Boundary shall be 5,750 square feet, as set forth in Note 11 in Table 5-1.A of the Pitkin County Land Use Code. In the case of a conflict between the provisions of the BUGB-O zone district and the provisions of any underlying zone district the more restrictive standards shall apply.

(d) Receiving Sites for Transferable Development Rights (TDRs)

Transferable development rights shall not be landed on any lot or parcel zoned BUGB-O in the Basalt Urban Growth Boundary to obtain an exemption from GMQS for any floor area beyond the final maximum floor area of 5,750 square feet.

(e) Growth Management Quota System (GMQS)

Lands in the BUGB-O zone district are subject to the GMQS. However, a GMQS allotment shall not be utilized to exceed the final maximum floor area of 5,750 square feet for the BUGB-O zone district.

(Code repealed and reenacted (all sections) by Ord. 014-D-2006, 07-05-06; § 3-40-160 added Ord. 036-2023, 11-15-2023)

3-40-170: BC-O (BRUSH CREEK MASTER PLAN AREA OVERLAY) ZONE DISTRICT

(a) Intent

The BC-O (Brush Creek Master Plan Area Overlay) zone district is intended to implement the recommendations of the Brush Creek Master Plan. A fundamental objective of the Master Plan is to preserve the rural character and maintain existing land use patterns to protect the natural landscape.

The Brush Creek Master Plan recommends that the final maximum floor area for residential development is 5,750 square feet; and does not support the use of TDRs to increase the house size above 5,750 square feet. The intent of the BC-O zone district is to implement a final maximum floor area limitation of 5,750 square feet for residential development to ensure that new residences which are built in Brush Creek are of moderate size and are compatible in character with surrounding development.

(b) Location Criteria

The BC-O zone district shall apply to all lands within the boundaries of the Brush Creek Master Plan Area. As an overlay district, the BC-O zone district applies in addition to any underlying zone district applied to the property. In the case of a conflict between the provisions of the BC-O zone district and the provisions of any underlying zone district the more restrictive standards shall apply.

(c) Final Maximum Floor Area

The final maximum floor area for all residential development on any lot or parcel zoned BC-O in the Brush Creek Master Plan Area shall be 5,750 square feet, as set forth in Note 11 in Table 5-1.A of this Land Use Code. In the case of a conflict between the provisions of the BC-O zone district and the provisions of any underlying zone district the more restrictive standards shall apply.

(d) Receiving Sites for Transferable Development Rights (TDRs)

Transferable development rights shall not be landed on any lot or parcel zoned BC-O in the Brush Creek Master Plan Area to obtain an exemption from GMQS for any floor area beyond the final maximum floor area of 5,750 square feet.

(e) Growth Management Quota System (GMQS)

Lands in the BC-O zone district in the Brush Creek Master Plan Area are subject to the GMQS. However, a GMQS allotment shall not be utilized to exceed the final maximum floor area of 5,750 square feet for the BC-O zone district.

(Code repealed and reenacted (all sections) by Ord. 014-D-2006, 07-05-06; § 3-40-170 added Ord. 036-2023, 11-15-2023)

3-40-180: E-O (EMMA MASTER PLAN AREA OVERLAY) ZONE DISTRICT

(a) Intent

The E-O (Emma Master Plan Area Overlay) zone district is intended to implement the recommendations of the Emma Master Plan. The established vision for Emma in the Master Plan is to preserve traditional agricultural operations; protect the natural environment; and maintain low-density residential development that compliments the rural character of the Emma Master Plan Area.

The Emma Master Plan supports a base maximum floor area of 5,750 square feet for residential development that may only be increased to the final maximum floor area of 8,250 square feet “under exceptional circumstances” as determined through special review to utilize one TDR or through growth management competition,. The intent of the E-O zone district is to implement a final maximum floor area limitation of 8,250 square feet for residential development under circumstances that ensure that new residences built in the Emma Master Plan Area are of moderate size and are compatible in character with surrounding development.

(b) Location Criteria

The E-O zone district shall apply to all lands within the boundaries of the Emma Master Plan Area. As an overlay district, the E-O zone district applies in addition to any underlying zone district applied to the property. In the case of a conflict between the provisions of the E-O zone district and the provisions of any underlying zone district, the more restrictive standards shall apply.

(c) Final Maximum Floor Area

The final maximum floor area for all residential development in the Emma Master Plan Area on any lot or parcel zoned E-O shall be 8,250 square feet, as set forth in Note 11 in Table 5-1.A of this Land Use Code. In the case of a conflict between the provisions of the E-O zone district and the provisions of any underlying zone district, the more restrictive standards shall apply.

(d) Receiving Sites for Transferable Development Rights (TDRs)

Transferable Development Rights shall not be landed on any lot or parcel zoned E-O in the Emma Master Plan Area to obtain an exemption from GMQS for any floor area beyond the final maximum floor area of 8,250 square feet.

(e) Growth Management Quota System (GMQS)

Lands in the E-O zone district are subject to the GMQS in the Emma Master Plan Area. However, a GMQS allotment shall not be utilized to exceed the final maximum floor area of 8,250 square feet for the E-O zone district.

(Code repealed and reenacted (all sections) by Ord. 014-D-2006, 07-05-06; § 3-40-180 added Ord. 036-2023, 11-15-2023)

3-40-190: VCLS-O (THE VALLEYS OF CAPITOL CREEK AND LOWER SNOWMASS CREEK OVERLAY) ZONE DISTRICT

(a) Intent

The VCLS-O (Valleys of Capitol Creek and Lower Snowmass Creek Overlay) zone district is intended to implement key recommendations of the Master Plan for the Valleys of Capitol Creek and Lower Snowmass Creek (Master Plan), which was approved by the Snowmass-Capitol Creek Caucus Board in April 2023 and adopted by the Pitkin County Planning and Zoning Commission on May 2nd, 2023. A fundamental premise of the Master Plan is to *“to protect and preserve the quality of life and the rural/agricultural character of the Snowmass-Capitol Creek area in Pitkin County, Colorado; and to protect and preserve the scale of existing development.”*

The Master Plan recommends that there be no new free market multi-family, condominium, apartment, townhouse or mobile home units in the Caucus Area; that structures be sited for preservation of open space, irrigated agricultural lands, and pastures; the final maximum floor area for all residential development be limited to no more than 5,750 square feet; that TDRs not be used to increase house size above 5,750 square feet; that night skies be preserved; and that special event uses and venues be regulated to minimize noise, traffic and other impacts associated with such uses.

(b) Location Criteria

The VCLS-O zone district shall apply to all lands within the boundaries of the Valleys of Capitol Creek and Lower Snowmass Creek Master Plan Area. As an overlay district, the VCLS-O zone district regulations apply in addition to any underlying zone district provisions. In the case of a conflict between the provisions of the VCLS-O zone district and the provisions of any underlying zone district, the more restrictive standards shall apply.

(c) Final Maximum Floor Area

The final maximum floor area for all residential development on any lot or parcel zoned VCLS-O in the Valleys of Capitol Creek and Lower Snowmass Creek Master Plan Area shall be 5,750 square feet, as set forth in Note 11 in Table 5-1.A of this Land Use Code, subject to the exemptions and limitations identified in Paragraph 10(B) of Ordinance No. 36-2023. In the case of a conflict between the provisions of the VCLS-O zone district and the provisions of any underlying zone district, the more restrictive standards shall apply.

(d) Receiving Sites for Transferable Development Rights (TDRs)

Transferable development rights shall not be landed on any lot or parcel zoned VCLS-O in the the Valleys of Capitol Creek and Lower Snowmass Creek Master Plan Area to obtain an exemption from GMQS for any floor area beyond the final maximum floor area of 5,750 square feet.

(e) Growth Management Quota System (GMQS)

Lands in the VCLS-O zone district in the Valleys of Capitol Creek and Lower Snowmass Creek are subject to the GMQS. However, a GMQS allotment shall not be utilized to exceed the final maximum floor area of 5,750 square feet for the VCLS-O zone district.

(f) Residential Development and Siting Criteria

Whenever development is proposed on lands zoned VCLS-O that requires Site Plan review pursuant to Section 7-10-50, the following standards shall apply in addition to those that would otherwise be applied under the Site Plan and Activity Envelope provisions of the Code. In the case of a conflict between the following VCLS-O standards and the provisions of Sec. 7-10-50, the more restrictive standards shall apply:

- a. New structures and driveways shall be sited to preserve open, irrigated agricultural lands and be compatible with existing topography.
- b. Landscaping intended to screen proposed structures, driveways and other improvements shall include topographical features such as berms designed to blend with the natural terrain.
- c. New development shall not include overhead beams or arches over driveway entrances.
- d. Xeriscaping, native plant materials and other water conserving measures shall be used to minimize water consumption associated with landscape irrigation.
- e. New structures shall not dominate the landscape but instead be sited and designed in harmony with the site's existing topography to minimize visual impact from roads and neighboring homes.

- f. Building designs consistent with the overall character of the VCLS area are preferred.
- g. Highly reflective windows or windows, that by their color, mimic the appearance of the sky or vegetation are prohibited.
- h. New structures shall comply with the standards related to earth-tone colors as described in Section 7-20-120(d)(5) of the Code.
- i. All development shall comply with the current County Lighting Standards (Section 7-20-140).
- j. In addition to the lighting standards contained in Section 7-20-140 of the Land Use Code the following standards shall apply on lands zoned VCLS-O:
 - 1. All forms of sign illumination shall be prohibited, including internal and external illumination.
- k. New residential development shall incorporate measures to reduce lawn space, retain existing native vegetation and utilize native species for new landscaping consistent with re-wilding principles in an effort to provide food, shelter, and habitat for wildlife, birds, and pollinators.
- l. Abandoned fencing, both wood and wire, that is no longer serving a functional purpose should be removed. Existing fencing should be made wildlife friendly by using techniques such as short sections of smooth wire and/or “lay-down” fences in areas of known wildlife crossing.

(g) Water Standards

Whenever development is proposed on lands zoned VCLS-O that require Site Plan review pursuant to Section 7-10-50, the following standards shall apply in addition to those that would otherwise be required under the Site Plan and Activity Envelope provisions of the Code. In the case of a conflict between the following VCLS-O standards and the provisions of Sec. 7-10-50, the more restrictive standards shall apply.

Landscape - Garden Irrigation

- a. Irrigation systems shall prioritize the use of drip or soaker irrigation technology, directing water efficiently to plant roots to minimize evaporation and runoff.
- b. Smart irrigation controllers shall be installed in all automated irrigation systems, adjusting watering schedules based on real-time weather conditions and soil moisture levels.
- c. Where sprinkler irrigation is used the system shall utilize low-flow sprinkler heads and efforts should be made to avoid use of the system during windy weather.

- d. Soil moisture sensors are required for all residential irrigation systems to prevent overwatering and ensure efficient water use.
- e. Xeriscaping, including the use of native drought-tolerant plants instead of sod shall be incorporated into all landscaping plans to minimize water consumption.
- f. When used, turf grass use shall be limited to no more than 2,000 square feet and will utilize the Pitkin County Revegetation Guide for seed mix.
- g. Rainwater harvesting systems are encouraged for residential properties to collect and store rainwater, which shall be utilized for landscape irrigation.
- h. Greywater from residential uses should be reused for landscape irrigation, provided such reuse is consistent with local health regulations.
- j. Ponds shall only be allowed for irrigation purposes and state-approved augmentation plans only.
- j. Ponds shall not be allowed for aesthetic purposes.

Agricultural Irrigation

- a. Agricultural irrigation systems shall implement water efficient technology and methods where possible.
- b. Smart irrigation controllers shall be installed in all automated irrigation systems, adjusting watering schedules based on real-time weather conditions and soil moisture levels.
- c. The cultivation of drought-resistant crop varieties is encouraged as a strategy to reduce water demand in agricultural operations.
- d. Ponds shall only be allowed for irrigation purposes and state-approved augmentation plans.
- e. Ponds shall not be allowed for aesthetic purposes.

(Code repealed and reenacted (all sections) by [Ord. 014-D-2006, 07-05-06](#); § 3-40-190 added [Ord. 036-2023, 11-15-2023](#); [Ord. 044-2025, 12-03-2025](#))

3-50: URBAN/SUBURBAN RESIDENTIAL ZONES

The following Urban/Suburban Residential zone districts are hereby established and are intended for use inside established urban growth boundaries, with the exception of the VR district, which is intended for use in the Redstone townsite.

3-50-10: R-30 (SUBURBAN DENSITY RESIDENTIAL–30,000 SQ. FT. LOT)

- (a) Intent

The R-30 (Suburban Density Residential–30,000 Square Foot Lot) zone district is intended to provide areas for suburban density, single-family and duplex residential dwelling units with customary accessory uses. Recreational and institutional uses customarily found near residential areas are also contemplated. R-30 zoning should only be applied to lands designated for this density on the Pitkin County Comprehensive Plan, or to rezone already-developed areas into conformity with actual development patterns and densities.

(b) Locational Criteria

Lands located within this zone district should be located in proximity to the City of Aspen and the historic Redstone Townsite.

(c) Transferable Development Rights

TDRs may not be severed and sold from lands located in the R-30 zone district, unless the lot or parcel is determined to be constrained or visually constrained pursuant to Sec. 6-70-40 or if the property is designated on the Pitkin County Historic Register. TDRs may be purchased and used in the R-30 zone district for the purposes of (a) increasing the maximum size of an existing dwelling within the limits on final maximum gross floor area established in Table 5-1, or (b) creating a new development right on a legal parcel located within the Aspen Urban Growth Boundary, pursuant to Secs. 6-70 and 2-40-30, and as set forth in Table 2-1.

(d) Growth Management Quota System (GMQS)

Lands in the R-30 zone district are subject to the GMQS (see Chapter 6).

**3-50-20: R-15 (MODERATE DENSITY RESIDENTIAL
15,000 SQ. FT. LOT)**

(a) Intent

The R-15 (Moderate Density Residential – 15,000 Square Foot Lot) zone district is intended to provide areas for moderate density, single-family, residential dwelling units with customary accessory uses.

(b) Location Criteria

This zone district is located adjacent to the City of Aspen.

(c) Transferable Development Rights

TDRs may not be severed and sold from lands located in the R-15 zone district, unless the lot or parcel is determined to be constrained or visually constrained pursuant to Sec. 6-70-40 or if the property is designated on the Pitkin County

Historic Register. TDRs may be purchased and used in the R-15 zone district for the purposes of (a) increasing the maximum size of an existing dwelling within the limits on final maximum gross floor area established in Table 5-1, or (b) creating a new development right on a legal parcel located within the Aspen Urban Growth Boundary, pursuant to Secs. 6-70 and 2-40-30, and as set forth in Table 2-1.

Growth Management Quota System (GMQS)

Lands in the R-15 zone district are subject to the GMQS (see Chapter 6).

**3-50-30A: R-15A (MODERATE DENSITY RESIDENTIAL
15,000 SQ. FT. LOT)**

(a) Intent

The R-15A (Moderate Density Residential – 15,000 Square Foot Lot) zone district is intended to allow for moderate density residential development with customary accessory uses.

(b) Locational Criteria

Lands appropriate for R-15A zoning are generally situated at the edge of existing urban centers and/or in areas where existing development density is in the range of three (3) units per acre.

(c) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands located in the R-15A zone district, unless the lot or parcel is determined to be constrained or visually constrained pursuant to Sec. 6-70-40 or if the property is designated on the Pitkin County Historic Register. TDRs may be purchased and used in the R-15 zone district for the purpose of increasing the maximum size of an existing dwelling within the limits on final maximum gross floor area established in Table 5-1, pursuant to Sec. 6-70 and as set forth in Table 2-1.

(d) Growth Management Quota System (GMQS)

Lands in the R-15A zone district are subject to the GMQS (see Chapter 6).

**3-50-30B: R-15B (MODERATE DENSITY RESIDENTIAL
15,000 SQ. FT. LOT)**

(a) Intent

The R-15B (Moderate Density Residential – 15,000 Square Foot Lot) zone district is intended to allow for moderate density residential development with customary accessory uses.

(b) Locational Criteria

Lands appropriate for R-15B zoning are generally situated at the edge of existing urban centers and/or in areas where existing development density is in the range of three (3) units per acre.

(c) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands located in the R-15B zone district. Maximum gross floor area exempt from Growth Management is 5,750 square feet in the R-15B zone district and maximum final floor area is 5,750 square feet. As shown in the notes in Table 6-12: TDR Table, in zone districts with FAR limits such as the R-15B zone district, where TDRs are available to increase house size, the maximum size of the house shall be limited by the applicable FAR as shown in Table 5-1. If the FAR limits house size below 5,750 sf, then TDRs may not be used.

(d) Growth Management Quota System (GMQS)

Lands in the R-15B zone district are subject to the GMQS (see chapter 6).

(Code repealed and reenacted (all sections) by [Ord. 014-D-2006, 07-05-06](#); § 3-50-3 (part) amended [Ord. 026-06, 09-13-06](#))

**R-50-40: R-6 (MEDIUM DENSITY RESIDENTIAL
6,000 SQ. FT. LOT)**

(a) Intent

The R-6 (Medium Density Residential District–6,000 Square Foot Lot) zone district is intended to allow for medium density, single-family, residential dwelling units with customary accessory uses on small lots.

(b) Locational Criteria

Lands in the R-6 zone district are intended to be located within or in close proximity to unincorporated towns in Pitkin County.

(c) Transferable Development Rights

TDRs may not be severed and sold from lands located in the R-6 zone district, unless the lot or parcel is determined to be constrained or visually constrained

pursuant to Sec. 6-70-40 or if the property is designated on the Pitkin County Historic Register. TDRs may be purchased and used in the R-6 zone district for the purposes of (a) increasing the base floor area of a dwelling unit within the limits on final maximum gross floor area established in Table 5-1, or (b) creating a new development right on a legal parcel located within the Aspen Urban Growth Boundary, pursuant to Sec. 6-70 and as set forth in Table 2-1.

(d) Growth Management Quota System (GMQS)

Lands in the R-6 zone district are subject to the GMQS (see Chapter 6).

**3-50-50 VR (VILLAGE RESIDENTIAL
6,000 SQ. FT. LOT)**

(a) Intent

The VR (Village Residential–6,000 Square Foot Lot) zone district is intended to preserve the historical integrity of the existing neighborhood, ensure compatibility with existing uses, and retain the village atmosphere, pedestrian scale, and unique character of Redstone.

(b) Location Criteria

Lands in the VR zone district are located in the townsite of Redstone.

(c) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands located in the VR zone district. TDRs may not be purchased and used in the VR zone district from other zone districts.

(d) GMQS Exemption

Certain new lots or parcels created within the VR zone district are exempt from the need to obtain a GMQS allocation, pursuant to Sec. 6-30-130.

(e) Subdivision Exemption

Certain new lots or parcels may be created within the VR zone district through a subdivision exemption, pursuant to the provisions of Sec. 2-30-30.

3-50-60 MHP (MOBILE HOME PARK)

(a) Intent

The MHP (Mobile Home Park) zone district is intended to provide areas for planned mobile home parks with customary accessory uses. This zone district is designed to provide income and price restricted affordable, detached housing. This zone district need not be located in proximity to incorporated or unincorporated towns, but should be located on mass transit routes, in areas where there will be minimal impact on surrounding areas, and in areas free of environmental hazards.

(b) Locational Criteria

Only lands immediately adjacent to lands in the MHP zone district on the 5th of July, 2006 may be included in the MHP zone district. The establishment of new mobile home parks within Pitkin County is not anticipated.

(c) Compliance with Mobile Home Park Standards Required

All development in the MHP zone district is required to comply with the mobile home park standards in Sec. 7-80.

(d) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands located in the MHP zone district. TDRs may not be purchased and used in the MHP zone district from other zone districts.

(e) Growth Management Quota System (GMQS)

Lands in the MHP zone district are subject to the GMQS (see Chapter 6).

3-50-70 AH (AFFORDABLE HOUSING)

(a) Intent

The AH (Affordable Housing) zone district is intended to provide land for the production of Category affordable housing.

(b) Locational Criteria

The AH zone district may only be applied within an urban growth boundary. Proposed development shall be located consistent with the recommendations in the Pitkin County Comprehensive Plan. Proposed development shall be located consistent with the availability of essential services, particularly mass transit.

(c) Minimum General Criteria for Development

The proposed development must satisfy the following minimum criteria:

- (1) Construction of dwelling units shall contribute to the annual housing production goal and unit mix established in, and shall comply with restrictions on income, occupancy, and sale price or rental rates established in the employee housing guidelines.
- (2) The proposed development must be consistent with the applicable Pitkin County Comprehensive Plan and the employee housing guidelines.
- (3) To the extent applicable, the proposed development shall substantially advance the goals, philosophies and criteria of the Pitkin County Citizen Housing Plan, the Aspen Area Citizen Housing Plan, and the goals and specific action items of the Aspen Area Community Plan and the Down Valley Comprehensive Plan.
- (4) The number of units proposed shall not necessitate any major infrastructure improvements, including but not limited to, improvements that would increase the capacity of the road network and extensions of public water or sanitary sewer.
- (5) The scale, mass and materials of the proposed development shall be visually compatible with the surrounding environment, both built and unbuilt.
- (6) The proposed development shall be clustered to the maximum extent possible.
- (7) The proposed development shall be situated so as to minimize the environmental and visual impacts of the development.
- (8) The proposed development shall provide community amenities for the benefit of residents and the general public, including, but not limited to: trails and other recreational opportunities, and mass transit facilities.
- (9) The proposed development shall utilize affordable housing programs to house low-income handicapped citizens or seniors, if possible.
- (10) The proposed development shall maximize construction quality and unit size within given price constraints.

(d) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands located in the AH zone district. TDRs may not be purchased from other zone districts and used in the AH zone district.

(e) GMQS Exemption

Construction of dwelling units in the AH zone district that meets all applicable requirements is exempt from the need to obtain a GMQS allocation pursuant to Sec. 6-30-40.

3-50-80 AH/PUD (AFFORDABLE HOUSING PUD)

(a) Intent

The AH/PUD (Affordable Housing Planned Unit Development) zone district is intended to provide for (i) the use of land for the production of Category affordable housing and resident occupied units by permanent residents of the County, or (ii) the preservation of existing housing stock that has been historically affordable to and occupied by permanent residents of the County for continued occupancy by qualified residents of Pitkin County, when the proposed development cannot comply with the requirements of the AH zone district. In some cases, the zone district also permits a limited component of free market units/lots to offset the cost of developing affordable housing. Recreational and institutional uses customarily found in proximity to residential areas, and commercial uses that are accessory to the housing development, are also included as special review uses.

(b) Locational Criteria

The AH/PUD zone district may only be applied within an urban growth boundary, and shall be located consistent with the recommendations of the Pitkin County Comprehensive Plan and the availability of essential services, particularly mass transit. Lands in this zone district should be located near pedestrian and bicycle trails.

(c) PUD Required

- (1) The AH/PUD district is a mandatory PUD district; no rezoning to the AH/PUD shall be approved without the simultaneous approval of a PUD for the entire property. The criteria for approval of a PUD are:
- (2) The proposed development cannot be accommodated within the AH zone district or another existing zone district.
- (3) Significant progress towards the achievement of current affordable housing goals established in the employee housing guidelines.

(4) Consistency with the development criteria in subsection (d) below;
and

(5) Minimization of adverse impacts on neighboring properties.

(d) Minimum General Criteria for Development

(1) All development in the AH/PUD zone district shall comply with the same general criteria for development applicable to the AH zone district set forth in Sec. 3-50-70(c).

(2) At least seventy (70) percent of each development in the AH/PUD zone district shall be comprised of either Category affordable housing units, or resident occupied affordable housing units. Of this seventy (70) percent, forty (40) percent of the units/lots must be deed restricted to comply with restrictions on income, occupancy, and sale price or rental rates established in the employee housing guidelines, and resident occupied units may comprise up to thirty (30) percent of the unit mix. Free market development may comprise up to thirty (30) percent of the unit mix. However, only forty (40) percent of a project's bedrooms may be located within free market or resident occupied units. Category housing or resident occupied housing must comprise at least sixty (60) percent of the bedroom mix of the project. Despite these requirements, projects may be comprised of all Category deed restricted or resident occupied units. In the event that no free market development is proposed as part of a project, the limitation on resident occupied units and bedroom mix shall not apply. Residential units may be comprised of single-family, duplex and multi-family dwelling units.

(e) Prior Zoning Requirements Continue

Lands zoned AH2/PUD, AH3/PUD, or AHP/PUD prior to the 5th of July, 2006 shall continue to be subject to the applicable PUD approval, and shall otherwise be governed by the zoning requirements and standards of the AH/PUD zone district.

(f) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands located in the AH-PUD zone district. TDRs may not be purchased and used in the AH-PUD zone district from other zone districts.

(g) GMQS Exemption

Construction of dwelling units in the AH/PUD zone district that meets all applicable requirements is exempt from the need to obtain a GMQS allocation pursuant to Sec. 6-30-40.

3-50-90: RMF – RESIDENTIAL MULTI-FAMILY

(a) Intent

The RMF zone district may only be applied to existing multi-family dwelling units. This zone district may not be applied to lands that do not contain legal multi family dwelling units.

(b) Location

The RMF zone district is only intended to be located within the Aspen Urban Growth Boundary, adjacent to established ski areas, and may only be located contiguous to major roads.

(c) Transferable Development Rights

TDR's may not be severed and sold from lands located in the RMF zone district, unless the lot or parcel is determined to be constrained or visually constrained pursuant to Sec. 6-70-40 or if the property is designated on the Pitkin County Historic Register. TDR's may be purchased and used in the RMF Zone District for the purposes of (a) increasing the floor area as established in Table 5-1 or (b) creating a new development right on a legal parcel located within the Aspen UGB pursuant to Secs. 6-0 and 2-40-30, and as set forth in Table 2-1.

(d) Lands in the RMF Zone District are subject to the GMQS (see chapter 6).

(Code repealed and reenacted (all sections) by [Ord. 014-D-2006, 07-05-06](#); Section 3-50-90 added [Ord. 029-2012, 10-24-2012](#))

3-60: URBAN BUSINESS ZONE DISTRICTS

The following Urban Business zone districts are hereby established and are intended for use inside established urban growth boundaries, except for the VC zone district, which is intended for use in the Redstone townsite.

3-60-10: B-2 (GENERAL BUSINESS)

(a) Intent

The B-2 (General Business) zone district is intended to provide for the establishment of commercial and low-intensity, non-polluting industrial uses that do not require or generate high customer traffic volumes and to permit customary accessory uses, including a small portion of the land area in high density, long-term residential dwelling units. Because of the need to preserve the existing inventory of B-2 zone district lands for commercial purposes, residential uses are secondary in priority to commercial uses.

(b) Location Criteria

The B-2 zone district is intended to be used primarily in and adjacent to the Aspen Business Center. Lands located outside an urban growth boundary will not be rezoned to the B-2 zone district.

(c) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands located in the B-2 zone district. TDRs may not be purchased and used in the B-2 zone district from other zone districts.

(d) Growth Management Quota System (GMQS)

Lands in the B-2 zone district are subject to the GMQS (see Chapter 6).

3-60-20: VC (VILLAGE COMMERCIAL)

(a) Intent

The VC (Village Commercial) zone district is intended to preserve the historical integrity of the existing Redstone historical district, to provide for businesses that sell goods and services to residents and visitors of Redstone, and to ensure that commercial development is consistent with the scale of existing structures and uses within the zone district.

(b) Locational Criteria

The VC zone district is for use only in the townsite of Redstone.

(c) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands located in the VC zone district. TDRs may not be purchased and used in the VC zone district from other zone districts.

(d) GMQS Exemption

Certain new lots or parcels created within the VC zone district are exempt from the need to obtain a GMQS allocation, pursuant to Sec. 6-30-130.

(e) Subdivision Exemption

Certain new lots or parcels may be created within the VC zone district through a subdivision exemption, pursuant to the provisions of Sec. 2-30-30.

3-70: SPECIAL PURPOSE DISTRICTS

The following Special Purpose zone districts are hereby created and are intended for use both inside and outside urban growth boundaries.

3-70-10: P-I (PUBLIC AND INSTITUTIONAL)

(a) Intent

The P-I (Public and Institutional) zone district is intended to provide for the development of public and institutional uses, facilities and services for governmental, civic, educational, humanitarian, health care and other non-profit public purposes consistent with the Pitkin County Comprehensive Plan and to provide for related uses that are customarily incidental or accessory to public and institutional uses. In addition, the zone district is intended to provide for other non-profit facilities and uses that require sites with multiple buildings, unique facilities, or facilities that are not easily categorized into an existing use category. Public and institutional uses may only be established in Urban Areas of the county.

(b) Planning and Review Requirements

Because of the high degree of public interest in public and institutional uses, proposed development within the P-I zone district is subject to additional planning and review requirements. All proposed development, and all major amendments to previous development approvals, shall be subject to the preparation and approval of a Public-Institutional Master Plan pursuant to Sec. 2-40-100. The Public-Institutional Master Plan shall cover the entirety of the property, and shall address all permitted activities/uses on the property. Only those uses, activities, and facilities shown on the approved Public-Institutional Master Plan shall be permitted. Minor amendments to previous development approvals may be approved by staff pursuant to the Public-Institutional Master Plan procedure in Sec. 2-40-100.

(c) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands located in the P-I zone district. TDRs may not be purchased and used in the P-I zone district from other zone districts.

(d) Growth Management Quota System (GMQS)

Lands in the P-I zone district are subject to the GMQS (see Chapter 6).

3-70-20: T (TOURIST)

(a) Intent

The T (Tourist) district is intended to provide for the renovation of existing and construction of new tourist accommodation facilities, including traditional lodges, and to permit small retail outlets to serve persons residing on the site. The range of permitted facilities, and the scale, density, and intensity of facilities permitted in Rural Areas will be lower than those permitted within the urban growth boundaries.

(b) Locational Criteria

Lands appropriate for the T zone district include those existing tourist-related non-residential facilities located outside or within urban growth boundaries that existed before the 5th of July, 2006. Additional lands outside the urban growth boundaries may be rezoned to the T zone district if (i) the principal structures supporting such facility will be grouped into a land area not exceeding one (1) acre in size (although the supporting lands used by patrons of the facility may be much larger), or (ii) the Community Development Director determines that a larger area of principal supporting structures will not significantly impact the rural character of the surrounding area. Additional lands within the urban growth boundaries may be rezoned to the T zone district if they are adjacent to non-residential zone districts.

(c) Transferable Development Rights (TDRs)

TDRs may not be severed and sold from lands located in the T zone district. TDRs may not be purchased and used in the T zone district from other zone districts.

(d) Growth Management Quota System (GMQS)

Lands in the T zone district are subject to the GMQS (see Chapter 6).

3-70-30: PLANNED UNIT DEVELOPMENT (PUD) DESIGNATION

(a) General

A Planned Unit Development (PUD) is a designation attached to a zone district that authorizes flexibility in the manner in which the County may apply certain standards of the underlying zone district to a proposed development. A PUD is approved through a rezoning of the property, and acts as an overlay designation that supplements, but does not replace, the terms of the underlying zone district (i.e., unless modified by the terms of the PUD, all provisions of the base zone district still apply). A PUD may only be approved if the Board of County Commissioners determines that it complies with all those standards applicable to

a rezoning in Sec. 2-40-10(c), as well as those additional criteria for approval of a PUD rezoning in Sec. 2-40-50(i). In the event of a conflict between the provisions of an approved PUD and those of the base zone district, the provisions of the PUD govern.

(b) Uses of PUDs

Planned Unit Development designations are used in Pitkin County only to achieve exceptional benefits in three ways critical to the implementation of the Pitkin County Comprehensive Plan:

- (1) Preservation of rural character and/or desirable open space in Rural Areas, and/or;
- (2) Protection of desirable open space in Urban Areas; and/or
- (3) Provision of Affordable Housing in Urban Areas.

The PUD designation may not be used to obtain variations from the requirements of the underlying zone district in return for additional amenities or benefits in ways other than rural character preservation, open space protection, or affordable housing.

(c) Applicability

The provisions of this Sec. 3-70-30 shall apply whenever a Planned Unit Development designation is approved after the 5th of July, 2006. A PUD designation may be requested within any zone district within the Rural Area, provided that it is intended to provide greater levels of rural land preservation in those areas than would otherwise be required by this Land Use Code. A PUD designation may be requested within any zone district within the Urban Area, provided that it is intended to protect desirable open space or increase the production or availability of affordable housing. There is no minimum land area requirement for application for a PUD.

(d) Mandatory PUD Designations

Within the RS-160, RS-35, RS-30, and RS-20 zone districts, the approval of a PUD designation is mandatory in connection with any subdivision of the land. All such PUD designations and related subdivisions shall comply with the provisions of this section.

(e) Ownership Parcel

A PUD designation must apply to the entirety of an ownership parcel. For purposes of this Sec. 3-70-30, an ownership parcel is defined as all land that is

contiguous, or would be contiguous except for intervening roads, owned (i) by an individual or entity, or (ii) by members of the same immediate family, or (iii) by entities with fifty (50) percent or greater common ownership, or (iv) by any combination of the above. The aggregate area of the lots or parcels shall be considered as one (1) lot or parcel regardless of diverse times of acquisition by a common owner and whether or not the property was acquired before adoption of this regulation. Owners of contiguous parcels under separate ownership may jointly file an application for a PUD designation.

(f) Phasing

A Planned Unit Development (PUD) shall ensure:

- (1) Each phase is self-sufficient and not dependent upon later phases;
- (2) The failure to develop subsequent phases will not have any adverse impacts on the Planned Unit Development (PUD), its surroundings or the community in general; and
- (3) Amenities such as open space and recreational areas are provided along with proposed residential or tourist accommodation construction at each development phase.

(g) Maximum Density

A PUD is not entitled automatically to the maximum density allowed in the zone district in which the land is located. Density shall be established based upon:

- (1) Analysis of environmental factors affecting the land;
- (2) Availability of public transportation;
- (3) Compatibility with surrounding land uses; and
- (4) Consistency with adopted Land Use Policies and the Pitkin County Comprehensive Plan.

(h) Variations in Standards

This section establishes criteria for varying dimensional standards, off-street parking standards, and street standards within a PUD. Standards in Chapter 7 related to Constrained Areas may not be varied.

(1) Dimensional Standards

(a) Standards that May be Varied

Variations to the following dimensional standards, as set forth in Table 5-1, may be approved if the County determines that the criteria in subsection (c) below have been met.

- (1) Minimum lot area per dwelling unit;
- (2) Minimum front, side, and rear yard and road setbacks;
- (3) Minimum lot width;
- (4) Maximum height of buildings;
- (5) Maximum permitted floor area of an individual house, provided that the total permitted floor area in all dwellings does not increase; and
- (6) Minimum usable open space.

(b) Overall Density/Intensity of Development

Notwithstanding the flexibility provided by subsection (a) above, the overall density or intensity of the development shall not exceed the maximum allowable density or intensity permitted for the property pursuant to Table 5-1.

(c) Criteria for Approval

The standards listed in subsection (a) above may be varied only if the County determines that the proposed dimensions result in a development that:

- (1) Is generally consistent with the scale of surrounding development;
- (2) Does not significantly reduce sunlight or create significantly increased shadowing of roads, pedestrian paths, or developed residential properties;
- (3) For any increase in height, is accompanied by increased setbacks along any property line adjacent to single or multi-family uses;
- (4) Provides protection for the water quality and wildlife habitat in rivers and streams at least equal to that if the dimensions had not been varied; and

(5) Provides areas within the PUD allocated for common usable open space. The common open space shall be used and be suitable, for scenic, landscaping or recreation purposes. The common open space shall be protected from future development, and shall be guaranteed to be available for use by residents of the entire property, through a deed restriction or other legal document, acceptable to the County, and recorded with the clerk and recorder of Pitkin County.

(2) Off-Street Parking Standards in Urban Area

(a) Standards That May be Varied

Within the Urban Area, the off-street parking regulations in Sec. 7-30-20 may be varied if the County determines that the criteria in subsection (b) below have been met.

(b) Criteria for Approval

The off-street parking standards may be varied only if the County determines that the proposed development:

- (1) Accommodates the estimated number of cars that will be owned by future occupants and guests of dwellings in a PUD;
- (2) Accommodates the parking needs of any non-residential uses of the development, if any;
- (3) Provides adequate vehicle parking and loading to avoid overloading street parking (if any) and to avoid interference with traffic flows, taking into account the varying time periods of various uses in the proposed development, and the availability of public or private transit programs; and
- (4) Provides for adequate and environmentally sound storage and drainage of snow, ice, and water from parking areas in an adequate, safe, and efficient manner that will not require significant additional public maintenance.

(3) Road Design Standards in Urban Areas

(a) Standards that May be Varied

Within the Urban Areas, the road design standards in Sec. 7-30-10(c), may be varied if the County determines that the standards in subsection (b) below have been met.

(b) Criteria for Approval

The road design standards listed in Sec. 7-30-10(c) may be varied only if the County determines that the proposed development:

- (1) Provides adequate access for emergency and utility vehicles throughout the development, and provides an access easement for emergency and utility vehicles to use any private roadways in the development for purposes of providing emergency services and for installation, maintenance, and repair of utilities;
- (2) Provides safe and convenient access to all portions of the proposed development using roads that fit the site's natural topography and site conditions, and that follow the contours of the natural terrain;
- (3) Provides principal vehicle access points that allow for smooth traffic flow while minimizing hazards to vehicular, pedestrian and bicycle traffic;
- (4) Provides internal trails and sidewalks to provide a logical, safe, and convenient system of pedestrian access to proposed lots and common areas, with linkages to off-site areas likely to be used by residents or tenants of the proposed development; and
- (5) Provides for storage and drainage of snow, ice, and water from internal streets in an adequate, safe, and efficient manner that will not require significant additional public maintenance.

(i) Criteria for PUD Approval

(1) Preservation of Rural Character and Open Space in Rural Area

In the Rural and Conservation zone districts, PUDs are used to ensure that any proposed rezoning or development of the land that occurs with a subdivision of land is consistent with the applicable Pitkin County Master Plan, and to ensure that the proposed future uses of the land protect the rural and agricultural character of the land to the maximum extent practicable. A PUD designed to protect rural character in the Rural Area shall only be approved if the County finds that all of the following criteria have been met:

- (a) The proposed development is consistent with the applicable Pitkin County Master Plan, including the applicable intent statements in this Chapter 3.
- (b) The proposed development is consistent with all applicable provisions of this Land Use Code, including the siting of any new structures and non-agricultural uses or activities in compliance with all applicable provisions of Chapter 7.
- (c) The proposed development increases the amount of land protected from development, or provides a greater degree of protection from development (beyond what would otherwise be required by this Land Use Code), or enhances the natural appearance, amenities, agricultural use, or wildlife habitat value, or water quality protection on the land included in the PUD.
- (d) The proposed development does not include non-residential uses not permitted in the underlying zone district, and does not permit houses larger than the largest size permitted in the underlying zone district as shown in Table 5-1.
- (e) The proposed development conserves the rural character and appearance of the land to the maximum extent practicable when viewed from County rights-of-way and State Highways.
- (f) The proposed development locates any new homes or accessory structures exceeding 5,750 square feet in size (excluding barns) where they are not visible from County rights-of-ways and State Highways, if a practicable alternative site exists.
- (g) The proposed development minimizes disruption of the land from its natural state.
- (h) The proposed development minimizes interference with off-site agricultural activities or neighboring uses that support agricultural activities.
- (i) The proposed development locates access roads and driveways to minimize visibility from County rights-of-way and State Highways.
- (j) The advantages to the County of the additional protection of rural lands from development provided by the proposed development significantly outweigh any disadvantages to the County created by any variations in standards that would otherwise apply to the property.

(2) Protection of Open Space in the Urban Area

A PUD designed to protect desirable open space in the Urban Area shall only be approved if the County finds that all of the following criteria have been met:

- (a) The proposed development (i) preserves and if possible enhances unique site features, and (ii) preserves and protects more open lands in their natural state than would be required by the underlying zone district.
- (b) The proposed development includes adequate open space for the mutual benefit of all residents and tenants of the proposed development, including residents of on-site affordable housing.
- (c) The proposed development includes adequate provisions for maintenance of common open space, and such provisions shall be included in a signed agreement between the owner and the County.
- (d) The advantages to the County of the additional protection of desirable open space provided by the proposed development significantly outweigh any disadvantages to the County created by any variations in standards that would otherwise apply to the property.

(3) Affordable Housing in the Urban Area

A PUD designed to provide affordable housing in the Urban Area shall be approved through the adoption of an AH/PUD zone district designation. The AH/PUD zone district provides a tool for negotiation of affordable housing and mixed-income developments in a way that achieves significant progress towards the housing goals established by the Board of County Commissioners' housing designee. Lands zoned AH2/PUD, AH3/PUD, or AHP/PUD before the 5th of July, 2006 shall be governed by the terms of the PUDs approved for such parcels. Applications for lands to be zoned AH/PUD after the 5th of July, 2006 shall be governed by the provisions of this Sec. 3-70-30. A PUD designed to provide affordable housing in the Urban Area shall only be approved if the County finds that all of the following criteria have been met:

- (a) The proposed development meets all standards required by Sec. 3-50-80.
- (b) The proposed development may not offer amenities unrelated to the provision of affordable housing in return for approval of

types or intensities of development not permitted in the zone district.

(c) The advantages to the County of the additional provision of affordable housing significantly outweigh any disadvantages to the County created by any variations in standards that would otherwise apply to the property.

(j) Architectural Review

The County may require an applicant for a PUD to submit architectural plans or models at the time of Conceptual or Detailed Subdivision review (if a subdivision of land is being requested) or at the time of Site Plan review (if no subdivision is being approved).

(1) Intent

The intent of architectural review is to promote the preservation and enhancement of the visual character of the County by preventing the development of inappropriate or out of character structures that:

- (a) Require the indiscriminate clearing of property, excessive grading and the destruction of trees and shrubbery; and/or
- (b) Are out of scale with adjacent land uses; and/or
- (c) Significantly reduce solar access to public open spaces or adjacent properties.

(2) Standards

The County may require changes to architectural plans to:

- (a) Minimize disturbances to the natural terrain; and/or
- (b) Reduce the adverse visual impacts of buildings that because of size, scale, color, or location are out of harmony with the neighborhood in which they are to be constructed; and/or
- (c) Promote advantageous solar orientation and energy conserving design; and/or
- (d) Promote consistency with scenic and rural character guidelines.

3-70-40: CD-PUD (CONSERVATION DEVELOPMENT PUD)

(a) Intent

- (1) Conservation Development PUD zone district allows for a variety of conservation development options, including low density, low intensity residential development or compatible rural commercial agricultural operations.
- (2) The purpose of this zone district is to allow residential and agriculturally related commercial uses that minimize impacts of construction, servicing and occupation of the residences to preserve the rural character of lands in this zone district. The zone districts seeks to limit the density and intensity of development thereby protecting existing onsite natural resources, preserving neighborhood rural character, decreasing employment generation which would occur with more intense development and otherwise limiting the demand for public services.

(b) Location Criteria

Lands eligible for the CD-PUD zone district are large properties of one hundred sixty (160) acres or greater located in Rural Areas. These parcels may have or may be associated with environmental or ecological resources, environmental hazards, areas of state interest, and agricultural resources, or may be properties otherwise sensitive to overly intensive development.

(c) A CD-PUD Development Plan

A CD-PUD Development Plan shall be approved concurrent with approval of a rezoning to the CD-PUD zone district.

(d) Use Restrictions

Lands within the CD-PUD zone district are limited to the following permitted and special review uses. Uses not listed are prohibited.

(1) Permitted Uses

- (a) Single family dwelling unit(s), together with associated accessory structures.
- (b) Farming or ranching. Under Development Option 1, Residential Development, farming or ranching shall be accessory to the primary residential use of the property, and any activities occurring on the property, or uses of the property that would cause the properties to be classified as agricultural lands pursuant to Title 39, Colorado Revised Statutes, are prohibited. Under

Development Option 2, Commercial Agricultural Development, and Option 3. Residential/Agricultural Development, farming and ranching must be conducted for the primary purpose of obtaining a monetary profit.

- (c) Agricultural buildings.
- (d) Agricultural stands.
- (e) Caretaker dwelling units.
- (f) Home occupations.
- (g) Public utilities, minor, which may be accessory to uses on other properties.
- (h) Satellite reception device.
- (i) Solar energy collector.
- (j) Trail

(2) Special Review Uses For Commercial Agricultural Development
Option 2 Only

- (a) Agricultural housing.
- (b) Arts and crafts studio.
- (c) Bed and Breakfast
- (d) Blacksmithing.
- (e) Cellular telephone facility or building-mounted cellular telephone antennae.
- (f) Cemetery.
- (g) Club house or recreational building.
- (h) Country inn, guest ranch and resort cabins (allows up to 20 guest rooms)
- (i) Day care home.
- (j) Firewood splitting, commercial.

- (k) Horse boarding.
- (l) Logging.
- (m) Micro Hydro Electric Energy System
- (n) Mineral and gravel extraction.
- (o) Nordic ski area & support.
- (p) Outdoor recreational, other.
- (q) Public utilities, major.
- (r) Radio or TV transmitting station.
- (s) Sewage disposal area or water plant.
- (t) Silviculture.
- (u) Use by Federal permit.
- (v) Water crossing or diversion.
- (w) Wind powered electric generator

(3) Special Review Uses for Residential/Agricultural Development Option 3 Only

- (a) Agricultural housing
- (b) Cellular telephone facility or building-mounted cellular telephone antennae.
- (c) Horse boarding, Accessory (Non-commercial).
- (d) Micro Hydro Electric Energy System.
- (e) Public utilities, major.
- (f) Sewage disposal area or water plant.
- (g) Water crossing or diversion
- (h) Wind powered electric generator.

(e) Development Standards

(1) General

All standards established in Chapters 5 and 7 of this Land Use Code shall apply within the CD-PUD unless modified as provided in subsection (3) below.

(2) Entire Parcel

An application for a CD-PUD Rezoning and Development Plan must include within the application the entirety of the un-subdivided parcel and adjacent parcels held in common ownership as configured on the 5th of July, 2006 sufficient to meet the minimum acreage requirement in Sec. 3-70-40(b). Adjacent parcels held in separate ownership may be aggregated to meet the minimum acreage requirement; if the CD-PUD is approved, the parcels shall be combined into one (1) ownership. Adjacent parcels acquired either subsequent to the 5th of July, 2006 or subsequent to establishment of a CD-PUD Plan may be added to an approved CD-PUD, subject to applicable approvals, which may include but not be limited to: Lot Line Adjustment, Merger, Rezoning and Growth Management Exemption pursuant to Section 6-30-100(a)(9).

(3) Height and Setbacks

Maximum heights of principal and accessory structures and setbacks of all structures may be modified through the CD-PUD approval process.

(4) Siting

All development will be sited after a site specific analysis of the resources, scenic qualities, and constraints of the parcel in consideration and application of the policies and siting criteria contained in this Land Use Code. At a minimum, the CD-PUD Development Plan shall establish Activity Envelopes on the parcel. Concurrent with or following approval of the CD-PUD Development Plan, approval of a Site Plan(s) conforming to this Land Use Code shall be required for all development within the approved Activity Envelopes.

(f) Conservation Easement

The entirety of the property within the CD-PUD shall be encumbered by a Conservation Easement that runs to the benefit of Pitkin County. The Conservation Easement shall depict the Activity Envelopes where approved

development may occur and the Preservation Areas outside of the Activity Envelopes. The Conservation Easement shall ensure at a minimum that:

- (1) The Preservation Areas are preserved in perpetuity.
- (2) The Property is limited to those allowed and special review uses specified in the CD-PUD Plan, as may be amended from time to time.
- (3) The Property is restricted in perpetuity against any future division, subdivision (including *de facto* subdivision), partition of the Property into more than one parcel of land, whether by physical or legal process, or encumbering less than the entirety of the Property by deed of trust, and any attempt to do so may be set aside by a court of competent jurisdiction. At all times, the Property shall be owned and conveyed as a single parcel. Notwithstanding the foregoing, multiple parties may hold and own undivided interests in the Property as co-tenants or joint tenants.
- (4) In the case of CD-PUD utilizing Commercial Agricultural Development Option 2 or Residential/Agricultural Development Option 3, the conservation easement shall include provisions guaranteeing continued commercial agricultural practice and operations.

Land that has been previously encumbered by a conservation easement is eligible for consideration in an application for a CD-PUD rezoning and Development Plan.

(g) Choice of Development Options

In the CD-PUD application, the applicant shall choose either Development Option 1 - Residential Development or Development Option 2 – Commercial Agricultural Development, or Development Option 3 – Residential/Agricultural Development. An applicant who chooses to use Development Option 2 or 3 on the parcel may later choose to instead apply for an approval under Development Option 1. As part of the application for approval under Development Option 1, the applicant shall relinquish all rights to conduct any uses by special review available only under Option 2 or 3.

(h) Development Option 1: Residential Development

(1) Maximum Residential Density

- (a) There shall be no more than two (2) principal single-family dwelling units and two (2) caretaker dwelling units on the parcel within the CD-PUD; except if the parcel contains six hundred

(600) acres of land or more, there shall be no more than three (3) principal single family dwelling units and two (2) caretaker dwelling units. An existing dwelling unit(s) may remain, but shall count towards the maximum residential density, either as one of the principal single family dwelling units or one of the caretaker dwelling units, and shall also count towards the maximum floor area.

(2) Maximum Floor Area

- (a) The total combined maximum floor area of all principal single-family dwelling units within the CD-PUD designation area shall be limited to nine thousand two hundred and fifty (9,250) square feet.
- (b) If an Overlay Zone District has a final maximum floor area limitation of less than nine thousand two hundred and fifty (9,250) square feet, no individual, or combination of two or three principal single family dwelling units shall exceed the Overlay Zone District limitation.
- (c) Up to two thousand, five hundred (2,500) square feet of floor area for accessory structures (including barns and other agricultural buildings), and up to one thousand (1,000) square feet of floor area for each caretaker dwelling unit is allowed in addition to the final maximum floor area for principal single family dwelling units. All agricultural floor area, including barns, shall be considered to be “accessory” and shall count towards the limitation of two thousand, five hundred (2,500) square feet of accessory floor area in Development Option 1. Floor area for accessory structures and the caretaker dwelling unit(s) may not be combined.

(3) Growth Management Quota System (GMQS)

Approval of a CD-PUD Development Plan Development Option 1 shall result in the creation of the following development rights on the property and the following exemptions from the requirements of GMQS (see chapter 6), provided that all structures are constructed in compliance with all applicable requirements of this Land Use Code:

- (a) Eight thousand two hundred fifty (8,250) square feet of residential floor area for principal single family dwelling units. Any Overlay Zone District floor area limitation of less than eight thousand two hundred fifty (8,250) square feet shall apply as the maximum growth management exemption for

principal single-family dwelling unit floor area, with no individual, or combination of two or three principal single family dwelling units exceeding the Overlay Zone District limitation. On parcels containing less than six hundred (600) acres, floor area may be divided between two (2) single family dwelling units or used exclusively for one (1) single family dwelling unit. On parcels containing six hundred (600) acres or more, floor area may be divided between up to three (3) single family dwelling units or used exclusively for one (1) single family dwelling unit.

- (b) Two thousand five hundred (2,500) square feet of floor area for accessory structures, including agricultural buildings. This allowance may not be combined with the exemption in subsection (a) above to create larger principal structures.
- (c) One thousand (1,000) square feet of floor area for each caretaker dwelling unit. If there is one (1) single-family dwelling unit, only one caretaker unit is exempt from GMQS; if there are two (2) single family dwelling units, two caretaker units may be exempt from GMQS. This allowance may not be combined with the accessory structure exemption in subsection (c) above to create larger accessory structures or caretaker dwelling units; nor may it be combined with the exemption in subsection (a) or (b) above to create larger principal single-family dwelling units. No more than two (2) caretaker units shall be exempt from GMQS.

(4) Transferable Development Rights (TDRs)

- (a) TDRs from sending sites outside of the CD-PUD may not be used in the CD-PUD under Development Option 1. However, TDRs from within the CD-PUD may be used to increase the final maximum floor area of the principal single-family dwelling unit(s) from eight thousand two hundred fifty (8,250) square feet up to a total of nine thousand two hundred and fifty (9,250) square feet of gross floor area exempt from GMQS, unless an Overlay Zone District has a more restrictive final maximum floor area limitation.
- (b) TDRs may be severed and sold from lands located within the CD-PUD under Development Option 1. TDRs available for sale shall be calculated at one (1) TDR for each thirty five (35) acres included in the CD-PUD, but excluding the first one hundred sixty (160) acres that are developed pursuant to the standards for Option 1.

(c) If the applicant chooses to limit the permitted principal single family dwelling unit(s) to less than the eight thousand two hundred fifty (8,250) square feet that is exempt from GMQS or to less than the eight thousand (8,000) square feet that is exempt from GMQS in the Frying Pan, then one TDR per each two thousand five hundred (2,500) square foot reduction in the total floor area of the principal single-family dwelling units may be severed and sold. For example, if the total floor area of the principal single-family dwelling units is limited to five thousand seven hundred fifty (5,750) square feet, the CD-PUD would have one (1) TDR to sever and sell. As another example, if floor area is limited to three thousand two hundred and fifty (3,250) square feet in one principal structure and the second (allowed) principal structure was never built, the property would have two (2) TDR's to sever and sell.

(5) Vested Rights

Approval of a CD-PUD under Development Option 1 shall be granted vested property rights pursuant to Sec. 2-20-170 for a period of twenty (20) years.

(6) Agricultural Property Tax Classification – Uses

A CD-PUD approved under Development Option 1 shall specify that the primary purpose of ownership and use of all property in the CD-PUD is for residential purposes, and that all improvements and uses of lands within the CD-PUD are associated with residential use of the property. Any activities occurring on the property, or uses of the property that would cause the properties to be classified as agricultural lands pursuant to Title 39, Colorado Revised Statutes, are prohibited.

(i) Development Option 2: Commercial Agricultural Development

If the Community Development Director verifies that a portion of the parcel included in the CD-PUD application is currently operating legal commercial agricultural uses, then the property may be developed with additional commercial uses as set forth below. In return for the availability of additional commercial agricultural uses, residential development of the property shall be more limited than that allowed under Options 1 and 3.

(1) Special Review Uses

(a) Additional Uses Available

In addition to those uses by special review listed in Sec. 3-70-40(d)(2), if Development Option 2 is chosen, the applicant may

request that the Board of County Commissioners approve any permitted or special review use listed in Table 4-1 that is (i) consistent with the existing agricultural operations on the property, and (ii) support the continuing existence of the existing agricultural operation on the property. Special review uses may be included in the application for approval by the Board as part of the CD-PUD, or may be requested after approval of the CD-PUD through the special review process in Sec. 2-40-20.

(b) Criteria for Approval of Special Review Uses

Applications for special review uses are reviewed on an individual basis to determine the appropriateness of the proposed use and level of activity, and shall only be approved if the Board of County Commissioners finds that the use: (i) is consistent with the adopted Comprehensive Plan for Pitkin County; and (ii) is related to, and will support the continued existence of, a commercial agricultural activity or use currently existing on the property; and (iii) will not diminish the agricultural and/or conservation resource value of the parcel; and (iv) is consistent with the stated intent of the CD-PUD zone district; and (v) will occur at times and in frequencies that will not impose significant adverse impacts on nearby residents.

(c) Annual Review

The BOCC may require the Applicant to submit a statement annually to the Community Development Director attesting to the continued conformance of the special review use(s) to the conditions of approval.

(2) Maximum Residential Density

(a) There shall be no more than two (2) principal single-family dwelling units and two (2) caretaker dwelling units on the parcel within the CD-PUD; except if the parcel contains six hundred (600) acres of land or more, there shall be no more than three (3) principal single family dwelling units and two (2) caretaker dwelling units. An existing dwelling unit(s) may remain, but shall count towards the maximum residential density, either as one of the principal single family dwelling units or one of the caretaker dwelling units, and shall also count towards the maximum floor area.

(3) Maximum Floor Area

- (a) On parcels eligible for two (2) principal single family dwelling units, the combined final maximum floor area for said units shall be nine thousand two hundred and fifty (9,250) square feet. On parcels eligible for up to three (3) principal single family dwelling units, the combined final maximum floor area for said units shall not exceed nine thousand two hundred and fifty (9,250) square feet; and no individual unit shall contain more than five thousand seven hundred fifty (5,750) square feet of floor area.
- (b) If an Overlay Zone District has a final maximum floor area limitation of less than nine thousand two hundred and fifty (9,250) square feet, no individual, or combination of two or three principal single family dwelling units shall exceed the Overlay Zone District limitation.
- (c) In addition to the final maximum floor area for the principal single family dwelling unit(s) each of the two caretaker dwelling units shall have a maximum floor area of one thousand (1,000) square feet. If a legal caretaker dwelling unit exists on the date the CD-PUD is approved, and if the Caretaker Dwelling Unit is deed-restricted as stated in the affordable housing guidelines, the floor area of the Caretaker Dwelling Unit may be increased to a maximum size of one thousand (1,000) square feet. All barn floor area and floor area allowed for special review uses shall be in addition to the final maximum floor area for the principal single family dwelling units.
- (d) Agricultural building floor area shall be unlimited in Development Option 2 and shall be in addition to the final maximum floor area for the principal single family dwelling units.
- (e) The following floor area is allowed for approved special review uses:

Parcel Size (acres)	Floor Area for Special Review Uses (sq.ft.)
160-200	1,250
201-300	2,000
301-500	3,000
>500	5,000

(4) Growth Management Quota System (GMQS)

Approval of a CD-PUD under Development Option 2 shall result in the creation of the following development rights on the property and the following exemptions from the requirements of GMQS (see chapter 6), provided that all structures are constructed in compliance with all applicable requirements of this Land Use Code:

(a) Nine thousand two hundred fifty (9,250) square feet of floor area divided between up to two (2) principal single-family dwellings on parcels containing less than six hundred (600) acres of land, or divided between up to three principal single family dwelling units on parcels containing six hundred (600) acres of land, or more. These exemptions may not be combined to produce any principal single-family dwelling with more than five thousand seven hundred fifty (5,750) square feet of floor area. Any Overlay Zone District floor area limitation of less than nine thousand two hundred fifty (9,250) square feet shall apply as the maximum growth management exemption for principal single-family dwelling unit floor area, with no individual, or combination of two or three principal single family dwelling units exceeding the Overlay Zone District limitation.

(b) Within the Frying Pan Valley Overlay Zone District, no more than four thousand (4,000) square feet shall be contained within any one principal single-family dwelling unit.

(c) One thousand (1,000) square feet of floor area for each of two

(2) caretaker dwelling units. These exemptions may not be combined to produce any caretaker dwelling unit with more than one thousand (1,000) square feet of floor area. No more than two caretaker units shall be exempt from GMQS.

(d) All agricultural building floor area.

(e) Floor area for approved special review uses shall be exempt from GMQS up to the maximums allowed in Sec. 3-70-40(i)(3)(e).

Parcel Size (acres)	Floor area exempt from GMQS (sq ft)
160-200	1,250
201-300	2,000
301-500	3,000
>500	5,000

(5) Transferable Development Rights (TDRs)

(a) TDRs may be severed and sold from lands located within the CD-PUD under Development Option 2. TDRs available for sale shall be calculated at one (1) TDR for each thirty (35) acres included in the CD-PUD, but excluding the first one hundred sixty

(160) acres that are developed pursuant to the standards for Option 2.

(b) In addition, if the applicant chooses to limit the total gross floor area of the permitted principal single-family dwelling unit(s) to less than the five thousand seven hundred fifty (5,750) square feet that is exempt from GMQS, then one (1) TDR per each two thousand five hundred (2,500) square feet reduction in the total floor area of the principal single-family dwelling unit(s) may be severed and sold. For example, if the total floor area of one of the principal single-family dwelling units is limited to three thousand two hundred fifty (3,250) square feet, the CD-PUD property would have one (1) TDR to sever and sell. As another example, if floor area was limited to five thousand seven hundred and fifty feet (5,750) square feet in one principal single-family dwelling unit and the second principal single family dwelling unit was never built, the property would have two (2) TDRs to sever and sell.

(6) Vested Rights

Approval of a CD-PUD under Development Option 2 shall be granted vested property rights pursuant to Sec. 2-20-170 for a period of twenty (20) years.

(j) Covenant Regarding Conveyance of Structures

The applicant shall by covenant or other permanent commitment running with the land, guarantee that in the event that multiple principal single family dwelling units and/or caretaker dwelling units exist and/or are developed within the CD-PUD, said units shall not be sold or otherwise conveyed or separated from the original parcel regardless of their ultimate form of ownership.

(j) Development Option 3: Residential/Agricultural Development

If the Community Development Director verifies that a portion of the parcel included in the CD-PUD application is currently operating legal commercial agricultural uses, then the property may be developed as set forth below. In return for eliminating the potential for non-agricultural commercial uses, residential development of the property shall be more limited than that allowed under Option 1 but less limited than that allowed under Option 2.

(1) Special Review Uses

The BOCC shall review applications for Special Review uses listed in Sec. 3-70-40(d)(3), pursuant to the standards in Sec. 2-30-30(h)(1) and (2). Special review uses may be included in the application for approval by the

Board as part of the CD-PUD, or may be requested after approval of the CD-PUD through the special review process in Sec. 2-40-20.

(a) Additional Criteria for Approval of Special Review Uses

Applications for special review uses are reviewed on an individual basis to determine the appropriateness of the proposed use and level of activity, and shall only be approved if the Board of County Commissioners finds that the use: (i) is consistent with the adopted Comprehensive Plan for Pitkin County; and (ii) is related to, and will support the continued existence of, a commercial agricultural activity or use currently existing on the property; and (iii) will not diminish the agricultural and/or conservation resource value of the parcel; and (iv) is consistent with the stated intent of the CD-PUD zone district; and (v) will occur at times and in frequencies that will not impose significant adverse impacts on nearby residents.

(b) Annual Review

The BOCC may require the Applicant to submit a statement annually to the Community Development Director attesting to the continued conformance of the special review use(s) to the conditions of approval.

(2) Maximum Residential Density

There shall be no more than two (2) principal single-family dwelling units and two (2) caretaker dwelling units on the parcel within the CD-PUD; except if the parcel contains six hundred (600) acres of land or more, there shall be no more than three (3) principal single family dwelling units and two (2) caretaker dwelling units. An existing dwelling unit(s) may remain, but shall count towards the maximum residential density, either as one of the principal single family dwelling units or one of the caretaker dwelling units, and shall also count towards the maximum floor area.

(3) Maximum Floor Area

(a) The total combined maximum floor area of all principal single-family dwelling units within the CD-PUD designation area shall be limited to nine thousand two hundred fifty (9,250) square feet. If an Overlay Zone District has a final maximum floor area limitation of less than nine thousand two hundred and fifty (9,250) square feet, no individual, or combination of two or three principal single family dwelling units shall exceed the Overlay Zone District limitation.

- (b) In addition to the final maximum floor area for the principal single family dwelling units, each of the two caretaker dwelling units shall have a maximum floor area of one thousand (1,000) square feet. If a legal caretaker dwelling unit exists on the date the CD-PUD is approved, and if the Caretaker Dwelling Unit is deed-restricted as stated in the affordable housing guidelines, the floor area of the Caretaker Dwelling Unit may be increased to a maximum size of one thousand (1,000) square feet. All barn floor area and floor area allowed for special review uses shall be in addition to the final maximum floor area for both the principal single family dwelling units and the caretaker dwelling units.
- (c) Agricultural building floor area shall be unlimited in Development Option 3 and shall be in addition to the final maximum floor area for the principal single family dwelling units and caretaker dwelling units.
- (d) The following floor area is allowed for approved special review uses:

Parcel Size (acres)	Floor Area for Special Review Uses (sq.ft.)
160-200	1,250
201-300	2,000
301-500	3,000
>500	5,000

(4) Growth Management Quota System (GMQS)

Approval of a CD-PUD under Development Option 3 shall result in the creation of the following development rights on the property and the following exemptions from the requirements of GMQS (see chapter 6), provided that all structures are constructed in compliance with all applicable requirements of this Land Use Code:

- (a) Nine thousand two hundred fifty (9,250) square feet of floor area for the principal single family dwelling units. Any Overlay Zone District floor area limitation of less than nine thousand two hundred fifty (9,250) square feet shall apply as the maximum growth management exemption for principal single-family dwelling unit floor area, with no individual, or combination of two or three principal single family dwelling units exceeding the Overlay Zone District limitation.

- (b) One thousand (1,000) square feet of floor area for each of two (2) caretaker dwelling units. These exemptions may not be combined to produce any caretaker dwelling unit with more than one thousand (1,000) square feet of floor area. No more than two caretaker units shall be exempt from GMQS.
- (c) All agricultural building floor area.
- (d) Floor area for approved special review uses shall be exempt from GMQS up to the maximums allowed in Sec. 3-70-40(i)(3)(e).

Parcel Size (acres)	Floor area exempt from GMQS (sq ft)
160-200	1,250
201-300	2,000
301-500	3,000
>500	5,000

(5) Transferable Development Rights (TDRs)

- a. TDRs may be severed and sold from lands located within the CD-PUD under Development Option 3. TDRs available for sale shall be calculated at one (1) TDR for each thirty (35) acres included in the CD-PUD, but excluding the first one hundred sixty (160) acres that are developed pursuant to the standards for Option 3.
- (b) In addition, if the applicant chooses to limit the total gross floor area of the permitted principal single-family dwelling unit(s) to less than the nine thousand two hundred fifty (9,250) square feet that is exempt from GMQS, then one (1) TDR per each two thousand five hundred (2,500) square feet reduction in the total floor area of the principal single-family dwelling unit(s) may be severed and sold.

(6) Vested Rights

Approval of a CD-PUD under Development Option 3 shall be granted vested property rights pursuant to Sec. 2-20-170 for a period of twenty (20) years.

(7) Covenant Regarding Conveyance of Structures

The applicant shall by covenant or other permanent commitment running with the land, guarantee that in the event that multiple principal single family dwelling units and/or caretaker dwelling units exist and/or are developed within the CD-PUD, said units shall not be sold or otherwise conveyed or separated from the original parcel regardless of their ultimate form of ownership.

(Code repealed and reenacted (all sections) by [Ord. 014-D-2006, 07-05-06](#); § 3-70-40 (part) amended [Ord. 030-06, 10-11-06](#); [Ord. 023-07, 08-28-07](#); [Ord. 030-2016 12-21-2016](#); [Ord. 028-2014, 07-23-2014](#) ; [Ord. 036-2023, 11-15-2023](#)

3-70-50: WEST OF MAROON PLANNING AREA (WOMP) OVERLAY ZONE DISTRICT

(a) Intent:

The scenic emphasis of the West of Maroon Creek planning area is on natural vistas, ridgelines, hillsides, sage open lands and riparian corridors. The open spaces between designated activity nodes are equally important features to be maintained in order to prevent sprawl and continuous development within the planning area. Throughout the planning area, structures are intended to be low scale and transition from the height and massing of the urban core of Aspen to the rural open spaces along the highway 82 corridor as one travels down valley (North). As one travels south, towards Aspen, a distinct visual transition from low scale, non-continuous development within the planning area to the more urban levels of development within the City of Aspen shall be maintained. Architecture shall reflect the design objectives of the specific activity nodes as found below.

(b) Locational Criteria:

The WOMP Overlay Zone District shall be applied to all parcels in all zone districts within the mapped area identified on the officially adopted zoning map. Within this mapped WOMP Overlay Zone District, are five (5) nodes that have additional design standards. These nodes are: (1) Airport Business Center (ABC); (2) Pitkin County Airport; (3) Buttermilk/Inn at Aspen; (4) Pomegranate/Aspen Country Inn; and (5) Highway 82 Corridor.

(c) Review Criteria

When applications are submitted for development within the West of Maroon Creek planning area, all aspects of the visual appearance including design, landscaping, lighting and signage shall be comprehensively planned. Priorities include maintaining views of natural features along the Highway 82 and Owl Creek Road corridors. Photographs referenced in Chapter 3, Section 2 of the WOMP depict protected “view” and “view planes”. These view and view planes shall be preserved when any development is proposed within the WOMP Overlay Zone District.

Landscaping, lighting and signage within the planning area shall be minimal based on appropriate design and placement of development within the designated activity nodes of the West of Maroon Creek Plan.

If conflict arises between any portion of the Land Use Code and the standard(s) set forth in the WOMP Overlay Zone District and Nodes, the more restrictive standard(s) shall prevail.

(d) Review Standards:

THE FOLLOWING APPLIES TO THE ENTIRE WEST OF MAROON CREEK PLANNING AREA:

Design:

- (1) The density, size and scale of development shall be designed to complement rather than obstruct the natural environment as seen from Highway 82.
- (2) Ridgelines shall be unobstructed.
- (3) The appropriate design of development shall minimize the need for “man-made” landforms used as tools for screening development or in order to protect a view or designated view plane (see Section 2 of WOMP). If proposed, these landforms shall be modest and discreet and shall not be egregious or out of character. Man-made landforms as part of a structure (such as a buried or partially buried parking garage) on the Pitkin County Airport are excepted from this standard.
- (4) Where existing or natural topography allows, structures shall be lowered in the ground to minimize height as seen from Highway 82 and Owl Creek Road and pedestrian trails.
- (5) Maintain a 200 foot setback throughout the corridor except as has been explicitly varied by previous land use approvals. For example, the 2004 Pitkin County Airport Master Plan allows for a 100 foot setback from Highway 82.
- (6) All utilities shall be buried underground.

Landscaping:

- (1) Only native species shall be allowed within the WOMP area as referenced in the Colorado Native Plant Society’s “Suggested Native Plants for Gardening and Landscape Use”.
- (2) Planting arrangements shall mirror natural dispersion of plant groupings in the surrounding natural landscape.
- (3) When landscaping between Activity Nodes is altered, it shall be subject to review; Green areas between nodes are critical for maintaining the scenic objectives of these guidelines and the WOMP in general.
- (4) Disturbance of native vegetation shall be minimized when developing sites during construction.
- (5) All riparian corridors (including ditches,) and native vegetation and natural plant groupings contained within those corridors, shall remain undisturbed. For Airport-specific guidelines, see the “Pitkin County Airport Activity Node” Landscaping section. Note that this standard is not intended to preclude normal and appropriate ditch maintenance.
- (6) Native vegetation shall be used to break up the visual impact of continuous impervious surfaces .such as parking areas.
- (7) No replacement trees shall mature to a height that would obstruct identified views and view planes (see Section 2 of the WOMP). The purpose of this provision is to preserve views for the long term; however, to maintain variation and balance in a landscape, up-to one quarter of the trees or shrubs installed per property may be of a native variety that matures at a height that may obstruct views.
- (8) Drip and low flow irrigation shall be utilized in order to conserve water usage.

Lighting:

- (1) All exterior lighting shall comply with Land Use Code Section 7-20-140.

Signage:

- (1) Prohibit Canopy, Projecting, and Roof signs. An identification sign shall only be a free standing or a wall sign.
- (2) Replacement or new signs shall be limited to one sign per business; either a wall sign or a free-standing sign, but not both

(except as may be modified under the Airport Activity Node standards.)

- (3) On the west side of Highway 82, allow one identification sign per primary entrance, except as may be modified under specific guidelines outlined for the Airport Activity Node.
 - (a) Maintain a setback of 10' from all property boundaries.
 - (b) Sign placement shall not impede traffic or obstruct views.
 - (c) No off-site signs shall be permitted unless approved by the County.
- (4) Signs at intersections shall only indicate the road name and not uses located further along that road. For example, Stage Rd., Harmony Rd., Tiehack Rd.
- (5) Only identification signs shall be lit. Lighting shall be compliant with Section 7-20-140 of the Pitkin County Land Use Code.
- (6) Ranch gates shall not be used as sign structures or located at any entrance drive or roadway along the Highway 82 Corridor within the WOMP area. Ranch gates are prohibited at entrances/exits onto Highway 82.
- (7) Address numbers shall comply with Pitkin County Board of County Commissioner Ordinance 31-2012 pertaining to addressing.
- (8) Agricultural stands shall be allowed one sign no greater than 6 square feet in addition to any other signs approved for the site.
- (9) Two sided, back-to-back free standing identification signs are required.

The following standards shall only apply to the Airport Business Center (ABC) Activity Node (Except where noted specifically for application to the ABC Subdivision, the following standards apply to all properties within the Activity Node):

Design:

- (1) The following height limits shall apply:
 - (a) No structures within the ABC Subdivision shall exceed twenty eight (28) feet to the midpoint and thirty (30) feet to the peak of the roof; or twenty eight (28) feet for a flat roof.

- i. Within two hundred (200) feet of the Highway 82 Right of Way, structures within the ABC Subdivision are limited to fifteen (15) feet to the peak of the roof, or to the high point of a flat roof, as measured from existing grade.
 - ii. Within a perimeter of thirty (30) feet of the boundary of the ABC Subdivision, structures shall not exceed fifteen (15) feet to the peak of the roof, or to the high point of a flat roof, as measured from existing grade.
- (b) Outside of the ABC Subdivision and within the two hundred (200) foot setback from the Highway 82 Right of Way, all structures are limited to fifteen (15) feet to the peak of the roof, or to the high point of a flat roof, as measured from existing grade; buildings shall incorporate design features that make the structure appear as one story as seen from the Highway 82 Corridor and from pedestrian paths.
- (c) Outside of the ABC Subdivision and outside of the two hundred (200) foot setback from the Highway 82 Right of Way, structures are limited to heights allowed in the underlying zone district.
- (2) Development within 200 feet of the Highway 82 Right of Way shall be lowered in the ground whenever possible.
- (3) Articulated rooflines shall be utilized. A roofline shall not appear as a continuous linear plane.

Landscaping:

- (1) Landscaping shall be native mixed species with varying heights and setbacks of plantings in order to soften and complement the facades of buildings.
- (2) Along the 100 Road in the ABC subdivision and along the frontage roads within the WOMP area, native vegetation as referenced in the Colorado Native Plant Society's "Suggested Native Plants for Gardening and Landscape Use" shall be used to break up the visual impact of continuous impervious surfaces such as parking areas.
- (3) Plantings along Highway 82 shall not create or contribute to a vegetative tunnel effect.

Signage:

- (1) Only wall signs shall be allowed along the frontage road and the 100 Road within the ABC.
- (2) No signs shall be located between Highway 82 and the Frontage Road and/or the 100 Road except:
 - (a) Those related to the rights-of-way.
 - (b) One free standing Identification sign per ABC entrance.
- (3) One, back-to-back, two sided free-standing identification sign per ABC entrance is required.
 - (a) Sign shall be “anchored” on the ground with a base and/or landscaped area.
 - (b) Base and landscaping will be included as part of total sign structure height.

The following standards shall only apply to the Pitkin County Airport Activity Node:

Design:

- (1) The appearance of any new development in the terminal area, as viewed from Highway 82 and Owl Creek Road shall be similar to the current facilities which include relatively low structures that are complemented by landscaping.
- (2) Development on the east and west side of the Pitkin County Airport runway shall include low structures which appear to be one story in height, while serving their intended purpose.
- (3) The rooflines and mass of structures shall be articulated and shall not appear as continuous (as viewed from Highway 82 and Owl Creek Road), unless such configuration is a necessary aspect of their intended purpose.
- (4) Use of architectural techniques such as partially buried, earth-bermed and/or earth covered roof and structures such as the Pitkin County Airport Operations Center (AOC), are a desirable means of limiting visual impacts.

- (5) While serving their intended purpose, structures, buildings and landscaping on the Pitkin County Airport shall be designed so as not to obstruct views of Mt. Daly and/or the Buttermilk Ski Area Mountain as viewed from Highway 82.
- (6) To the extent possible, undeveloped areas immediately beyond the ends of the Pitkin County Airport runway shall remain undeveloped as a visual break between Buttermilk to the south and shale bluffs to the north.
- (7) Maintain existing setback of 100 feet from property line along Highway 82.
- (8) Ensure that development, including structures, landforms and landscaping does not create a tunnel effect along Highway 82 or Owl Creek Road. If proposed, these landforms shall be “modest” and “discreet” and shall not be egregious or out of character.

Landscape:

- (1) Maintain weed control.
- (2) Maintain the south and north ends of the runway as unobstructed areas vacant of tall plantings and containing native grasses and shrubs.
- (3) On the west side of the Pitkin County Airport near the Airport Operations Center (AOC), maintain native plantings that mimic the surrounding Owl Creek corridor landscape vegetation, which could include cottonwoods and aspens behind the development contemplated to the north of the existing AOC structure.
- (4) Maintain the Owl Creek riparian corridor with native, natural vegetation where consistent with the Aspen-Pitkin Airport Wildlife Hazard Management Plan.

Signage:

- (1) Signage at the Pitkin County Airport shall be consistent with the Pitkin County Airport Master Plan sign plan for exterior signs. If visual conflicts exist with the intent of the body of these standards along the highway corridor, the Pitkin County Airport shall work with Community Development to resolve conflicts and amend the Pitkin County Airport Master Plan signage plan where appropriate.
 - (a) One two-sided back-to-back free standing identification sign per entrance is required.

The following standards shall only apply to the Buttermilk Activity Node:

Design:

- (1) The placement, height and massing of structures at the base of the Buttermilk ski area shall maintain open views of the ski mountain.
- (2) Roof lines shall be articulated so as not to appear as one continuous linear plane;
- (3) Maintain setback of 200 feet from Highway 82 Right of Way.

Landscaping:

- (1) Landscaping shall be native mixed species with plantings of varying heights and setbacks to soften and complement the facades of buildings as referenced in the Colorado Native Plant Society's "Suggested Native Plants for Gardening and Landscape Use";
- (2) The parking area provides views of the ski mountain and continues to provide a sense of open landscape. This area shall include native, low shrubs and grasses in designated islands throughout the lot. Native plantings will provide needed drainage areas while limiting water usage, and provide green coverage throughout the hard surface parking area. Only species identified in the Colorado Native Plant Society's "Suggested Native Plants for Gardening and Landscape Use" shall be used.
- (3) Existing intermittent tree placement along Owl Creek Road and the Buttermilk parking lot shall be maintained, and replacement trees shall be of a variety that is limited to a height at maturity that will continue to provide views of the mountain. To maintain mountain views, the density of the trees in this location shall not be increased.

Signage:

- (1) Limit free-standing identification signs to one per primary entrance.
 - (a) Sign shall be "anchored" on the ground with a base and/or landscaped area.
 - (b) Base and landscaping will be included as part of total sign structure height.
- (2) One back-to-back, two-sided free standing identification sign per primary entrance is required.

The following standards shall only apply to the Inn at Aspen Activity Node:

Design:

- (1) Maintain a setback of a minimum of 110 feet from the Highway 82 Right of Way.
- (2) Maintain height of 19 feet within the first 200 feet from the Highway 82 Right of Way. Allow height to increase to underlying zone district height standard when located more than 200 feet from the Highway 82 Right of Way.
- (3) Design structures using building materials and colors that blend with the landscape.

Landscaping:

- (1) Landscaping shall balance the need to complement development and maintain background views of ridgelines.
- (2) A variety of native species shall be used as landscaping is replaced as referenced in the Colorado Native Plant Society's "Suggested Native Plants for Gardening and Landscape Use".
- (3) Allowed height of replacement trees at maturity shall be determined based on siting of development and compliance with #1 above.

Signage:

- (1) Limit free-standing identification signs to one per primary entrance.
 - (a) Sign shall be "anchored" on the ground with a base and/or landscaped area.
 - (b) Base and landscaping will be included as part of total sign structure height.
- (2) One back-to-back, two-sided free standing identification sign per primary entrance is required.

The following standards shall only apply to the Pomegranate / Aspen Country Inn Activity Node:

Design:

- (1) To maintain views of backdrop ridgelines from Highway 82, maintain the height of structures at no higher than the current level. A reduction in building height is required as redevelopment occurs.

- (2). Maintain setback from the Highway 82 right of way as follows:
 - (a) Pomegranate: 180 feet to condominium building. Setback for the Pomegranate garages are subject to City of Aspen zoning and land use approvals.
 - (b) Aspen Country Inn senior housing: 195 feet to hip roof structure.
 - (c) Aspen Country Inn housing (west building): 200 feet.

Landscaping:

- (1) Maintain vegetation to screen development until such time as redevelopment occurs.
- (2) Maintain the continuous creekside native vegetation as viewed from Highway 82 when heading downvalley.
- (3) Landscaping shall compliment architecture and maintain background views of ridgelines; specifically the ridgeline views of Aspen Mountain, Highland Mountain, Buttermilk/Tiehack Mountains shall not be blocked by vegetation.
- (4) Replacement landscaping shall be comprised of a variety of native species.
- (5) Allowed height of replacement trees at maturity shall be determined based on siting of development and compliance with #3, above.
- (6) Only species referenced in the Colorado Native Plant Society's "Suggested Native Plants for Gardening and Landscape Use" shall be used.

Signage:

- (1) Limit free-standing identification signs to one per primary entrance.
 - (a) Sign shall be "anchored" on the ground with a base and/or landscaped area.
 - b. Base and landscaping will be included as part of total sign structure height.
- (2) One back-to-back, two-sided free standing identification sign per primary entrance is required.

§ 3-70-50 added Ord. 005-2014, 03-12-2014; amended (in part) Ord. 004-2025, 01-22-2025

3-70-60: VILLAGE LODGE PRESERVATION (VLP)

(a) Intent: The purpose of the Village Lodge Preservation (VLP) Zone District is to provide opportunities for and to encourage public use and enjoyment of privately owned historic tourist accommodation facilities located within the Town site of Redstone or on surrounding lands in the Crystal River Valley. The VLP zone district is intended to provide incentives for the upgrading and limited expansion of historic hotel, motel, lodge, and similar tourist accommodation facilities (including expansions within separate buildings to develop resort cabins, single family dwellings, and similar uses) when such expansions comply with the applicable development standards of this Land Use Code.

Lands which may be designated to the VLP zone district are those properties which:

- 1) Are eligible for listing on, or are already listed on, the National or State Register of Historic Places or the Pitkin County Historic Register; and
- 2) Are currently being legally used as tourist accommodation facilities or can be shown to have previously been used as tourist accommodation facilities; and
- 3) Are located within Redstone Historic District Boundary.

(b) Planning and Review Requirements: An approved Village Lodge Preservation Master Plan is required for any development in the VLP Zone District. The VLP Master Plan shall address all existing facilities and all proposed development, and shall be consistent with the Redstone Master Plan and Pitkin County Comprehensive Plan, and shall comply with all applicable requirements of the Land Use Code, including but not limited to the VLP Master Plan standards in Section 2-40-100, the Special Review standards in Sec. 2-30-30(h); Amendments to Development Applications and Permits in Sec. 2-20-150; and Activity Envelope and Site Plan Review in Sec. 2-30-20(g) and Sec. 7-10-50. The VLP Master Plan shall cover the entirety of

the property, and shall address all permitted activities/uses on the property.

VLP Master Plan uses are denoted as in Chapter 4, Table 4-1: Permitted Use Table as “A” – Allowed By Right - or “M” –Master Plan Uses. Uses denoted with an “A” or “M” are eligible for consideration in a VLP Master Plan review process. Uses denoted with an “M” are not automatically permitted. Only the specific uses, activities, and facilities approved as part of a site specific VLP Master Plan shall be permitted on a property.

(c) Property Specific Master Plan: Rezoning to the VLP Zone District requires a simultaneous Master Plan review for a property. A VLP Master Plan is a property specific master plan for a property that elects to rezone to the VLP Zone District. A VLP Master Plan is not a neighborhood master plan and/or comprehensive plan. A VLP master plan is not a site specific development plan and does not confer any vested rights.

(d) Land located within the VLP Zone District shall not be subdivided, partitioned, condominiumized or divided to create another lot, parcel, unit or other division of land or interest out of the property, including the creation of parcels that are 35 acres or larger pursuant to CRS Section 30-28-101.

(e) Transferable Development Rights (TDR’s): TDR’s may not be severed from and sold from lands located in the VLP zone district with the exception of TDR’s that are created from Designation to the Pitkin County Historic Register and associated requests for Optional Incentives. TDR’s may not be purchased from other zone districts and landed in the VLP zone district.

(c) Growth Management Quota Systems (GMQS): Lands in the VLP zone district are eligible for GMQS exemptions in accordance with Chapter 6 of the Pitkin County Land Use Code.

§ 3-70-60 added [Ord. 037-18, 08-22-18](#)

3-80: PRIOR ZONING REQUIREMENTS CONTINUE

Lands governed Public, Industrial, Unclassified and Accommodation/Recreation prior to the 5th of July, 2006 shall be governed by the zoning requirements and standards applicable to such lands prior to such date, as specified below. No new lands may be included in the Public, Industrial, Unclassified or Accommodation/Recreation zone districts.

3-80-10: PUB (PUBLIC)

(a) Intent

The PUB (Public) district is intended to provide for the development of public uses, facilities and services for governmental, civic, educational, humanitarian, health care and other non-profit (as evidenced by Internal Revenue Service Code 501C3 status (1993)), public purposes consistent with County land use plans and policies and to provide for related uses which are customarily incidental or accessory to public uses. Development activity in the zone should be based upon the adoption of a master plan.

(b) Allowed Uses

The following uses are allowed as of right in the Public (PUB) Zone District:

- (1) Accessory buildings and uses.
- (2) Bus stop.
- (3) Crop production.
- (4) Farm buildings.
- (5) Home occupations.
- (6) Hospitals.
- (7) Solar energy collectors (private use).
- (8) Trails.

(c) Special Review Uses

The following uses in the Public (PUB) zone district are subject to special review and may be permitted if found to be in support of allowed principal uses:

- (1) Agriculture stands.

- (2) Airport.
- (3) Amusement and entertainment establishments.
- (4) Caretaker dwelling units.
- (5) Cemeteries.
- (6) Churches.
- (7) Club houses or recreational buildings used in connection with and accessory to a permitted outdoor recreational use.
- (8) Commercial automobile parking lots.
- (9) Community health facilities.
- (10) Day care centers.
- (11) Dormitory housing.
- (12) Duplex dwelling units.
- (13) Equipment supplies and contraction or subcontracting.
- (14) Essential government and public utility uses, facilities and services.
- (15) General services.
- (16) Golf courses.
- (17) Junk yards.
- (18) Logging.
- (19) Medical/dental clinics.
- (20) Mineral exploration/mining concrete batch plants.
- (21) Multi-family dwelling units.
- (22) Nursing, convalescent, rest, and retirement homes.
- (23) Offices.
- (24) Outdoor recreational uses.

- (25) Parks, playgrounds, playing fields.
- (26) Places for retailing of goods (structures and businesses limited to twelve thousand (12,000) square feet of floor area per building).
- (27) Manufactured home.
- (28) Professional offices.
- (29) Radio transmitting station.
- (30) Research facilities, indoors.
- (31) Research facilities, other.
- (32) Satellite reception devices.
- (33) Schools/universities.
- (34) Sewage disposal areas/landfills/water plants.
- (35) Single-family dwelling units with a maximum floor area of 5,750 sq. ft. within the Basalt Urban Growth Boundary.
- (36) Transferable development rights (TDRs).
- (37) Uses, activities and facilities permitted by special use permit issued by Federal agencies.
- (38) Vehicle and aircraft sales and service.
- (39) Water crossing and diversion.

(d) Prohibited Uses

The following uses are prohibited in the Public (PUB) Zone District:

- (1) Alpine ski areas and support.
- (2) Animal production and husbandry services, and other farm and agricultural uses.
- (3) Commercial camping areas.
- (4) Commercial firewood splitting, storage and sales.

- (5) Commercial kennels and veterinary clinics.
- (6) Commercial riding stables.
- (7) Employee dwelling units.
- (8) Financial institutions.
- (9) Guest ranches.
- (10) Helicopter and Fixed Wing Aircraft Loading and Unloading
- (11) Mobile homes.
- (12) Motels, hotels, lodges.
- (13) Nordic ski areas and support facilities.
- (14) Personal service outlets: food stores, drug stores, post office substation, self-service laundries, dry cleaning outlets and liquor stores; the total space shall be limited to eighty (80) square feet of gross leasable space per dwelling unit in the district.
- (15) Resort cabins.
- (16) Restaurants and bars.
- (17) Timesharing/fractional fees.
- (18) Uses not listed.

(e) Master Plans

Undefined uses may be allowed through adoption of a master plan or amendment to an existing Master plan subject to Sections 2-20-150(g) and 2-40-100.

(f) Dimensional Requirements

The following dimensional requirements shall apply to all permitted and special review uses in the Public (PUB) Zone District:

- (1) Minimum lot area: special review.
- (2) Minimum lot area principal use: special review.

- (3) Minimum usable open space per dwelling unit: special review.
- (4) Minimum front yard setback: thirty feet (30').
- (5) Minimum side yard setback: ten feet (10').
- (6) Minimum rear yard setback: ten feet (10').
- (7) Minimum lot width: special review.
- (8) Maximum height principal structures: twenty-eight feet (28').
- (9) Maximum height accessory structures: twenty feet (20').
- (10) Maximum floor area ratio: .50.

(Code repealed and reenacted (all sections) by [Ord. 014-D-2006, 07-05-2005 § 3-80-10](#) amended (in part) [Ord. 026-10, 11-17-10](#); [Ord. 011-2022, 02-23-2022](#))

3-80-20: I (INDUSTRIAL)

(a) Intent

The I (Industrial) district is intended to provide for the establishment of non-polluting manufacturing and warehouse facilities and accessory long-term residential dwelling units.

(b) Allowed Uses

The following uses are allowed as of right in the Industrial (I) Zone District:

- (1) Accessory buildings and uses.
- (2) Bus stop.
- (3) Commercial firewood splitting, storage and sales.
- (4) Crop production.
- (5) Essential government public utility uses, facilities and services.
- (6) Home occupations.
- (7) Multi-family dwelling units.

- (8) Offices limited to one thousand (1,000) square feet per business.
- (9) Parks, playgrounds, playing fields.
- (10) Research facilities, indoors.
- (11) Single-family dwelling units.
- (12) Single-family dwelling units.
- (13) Solar energy collectors (private use).
- (14) Trails.

(c) Special Review Uses

The following uses in the Industrial (I) zone district are subject to special review and may be permitted if found to be in support of allowed principal uses:

- (1) Agriculture stands.
- (2) Amusement and entertainment establishments.
- (3) Caretaker dwelling units.
- (4) Commercial automobile parking lots.
- (5) Commercial kennels and veterinary clinics.
- (6) Community health facilities.
- (7) Employee dwelling units.
- (8) Equipment supplies and contraction or subcontracting.
- (9) Farm buildings.
- (10) Financial institutions.
- (11) Food related businesses.
- (12) General services.
- (13) Junk yards.
- (14) Mineral exploration/mining, concrete batch plants.

(15) Personal service outlets: food stores, drug stores, post office substation, self-service laundries, dry cleaning outlets and liquor stores; the total space shall be limited to eighty (80) square feet of gross leasable space per dwelling unit in the district.

(16) Manufactured home.

(17) Professional offices (office space restricted to a maximum of one thousand (1,000) square feet per business).

(18) Radio transmitting station.

(19) Research facilities, other.

(20) Restaurants and bars.

(21) Satellite reception devices.

(22) Schools/universities.

(23) Sewage disposal areas/landfills/water plants.

(24) Uses, activities and facilities permitted by special use permit issued by Federal agencies.

(25) Vehicle and aircraft sales and service.

(26) Water crossing and diversion.

(d) Prohibited Uses

The following uses are prohibited in the Industrial (I) Zone District:

(1) Airport.

(2) Alpine ski areas and support.

(3) Animal production and husbandry services, and other farm and agricultural uses.

(4) Cemeteries.

(5) Churches.

(6) Club houses or recreational buildings used in connection with and accessory to a permitted outdoor recreational use.

- (7) Commercial camping areas.
- (8) Commercial riding stables.
- (9) Day care centers.
- (10) Dormitory housing.
- (11) Duplex dwelling units.
- (12) Golf courses.
- (13) Guest ranches.
- (14) Helicopter and Fixed Wing Aircraft Loading and Unloading
- (15) Hospitals.
- (16) Logging.
- (17) Medical/dental clinics.
- (18) Mobile homes.
- (19) Motels, hotels, lodges.
- (20) Nordic ski areas and support facilities.
- (21) Nursing, convalescent, rest, retirement homes.
- (22) Outdoor recreational uses.
- (23) Places for retailing of goods.
- (24) Resort cabins.
- (25) Timesharing/fractional fees.
- (26) Uses not listed.

(e) Master Plans

Undefined Uses may be allowed through adoption of a master plan or amendment to an existing Master Plan subject to Sections 2-20-150(g) and 2-40-100.

(f) Dimensional Requirements

The following dimensional requirements shall apply to all permitted and special review uses in the Industrial (I) Zone District:

- (1) Minimum lot area for multi-family: fifteen thousand (15,000) square feet.
- (2) Minimum lot area for other: six thousand (6,000) square feet.
- (3) Minimum Lot Area per Dwelling Unit:
 - (a) Multi-family unlimited (special review): five thousand five hundred (5,500) square feet.
 - (b) Multi-family one bedroom: three thousand two hundred (3,200) square feet.
 - (c) Multi-family studio: two thousand five hundred (2,500) square feet.
- (4) Minimum usable open space per dwelling unit: one thousand two hundred (1,200) square feet.
- (5) Minimum front yard setback: thirty feet (30').
- (6) Minimum side yard setback: ten feet (10').
- (7) Minimum rear yard setback: ten feet (10').
- (8) Minimum lot width: fifty feet (50').
- (9) Maximum height principal structures: twenty-eight feet (28').
- (10) Maximum height accessory structures: twenty feet (20').
- (11) Maximum floor area ratio: .36.

(Code repealed and reenacted (all sections) by [Ord. 014-D-2006, 07-05-2006](#), Section 3-80-20 amended (in part) [Ord. 011-2022, 02-23-2022](#)

3-80-30: U (UNCLASSIFIED)

- (a) Intent

The U, Unclassified district, includes those properties in the County which have not been rezoned for uses because of their distance from developed areas and/or the lack of a land use plan for the areas in which they are located.

(b) Allowed Uses

The following uses are allowed as of right in the Unclassified (U) Zone District:

- (1) Accessory buildings and uses.
- (2) Animal production and husbandry services, other farm and agricultural uses (not including commercial feed lots).
- (3) Bus stop.
- (4) Crop production.
- (5) Farm buildings.
- (6) Home occupations.
- (7) Parks, playground, playing fields.
- (8) Manufactured home.
- (9) Single-family dwelling units.
- (10) Single-family dwelling units.
- (11) Solar energy collectors (private use).
- (12) Trails.

(c) Special Review Uses

The following uses are subject to special review:

- (1) Agriculture stands.
- (2) Caretaker dwelling units.
- (3) Cemeteries.
- (4) Churches.

- (5) Club houses or recreational buildings used in connection with and accessory to a permitted outdoor recreational use.
- (6) Commercial camping areas.
- (7) Commercial firewood splitting, storage and sales.
- (8) Commercial kennels and veterinary clinics.
- (9) Community health facilities.
- (10) Day care centers.
- (11) Employee dwelling units.
- (12) Equipment supplies and contraction or subcontractation.
- (13) Logging.
- (14) Mineral exploration/mining, concrete batch plants.
- (15) Nordic ski areas and support facilities.
- (16) Nursing, convalescent, rest, and retirement homes.
- (17) Outdoor recreational uses.
- (18) Radio transmitting station.
- (19) Resort cabins.
- (20) Satellite reception devices.
- (21) Schools/universities.
- (22) Sewage disposal areas/landfills/water plants.
- (23) Transferable development rights (TDRs).
- (24) Uses, activities and facilities permitted by special use permit issued by Federal agencies.
- (25) Water crossing and diversion.

(d) Prohibited Uses

The following uses are prohibited in the Unclassified (U) Zone District:

- (1) Airport.
- (2) Alpine ski areas and support.
- (3) Amusement and entertainment establishments.
- (4) Commercial automobile parking lots.
- (5) Commercial riding stables.
- (6) Dormitory housing.
- (7) Duplex dwelling units.
- (8) Essential government and public utility uses, facilities and services.
- (9) Financial institutions.
- (10) General services.
- (11) Golf courses.
- (12) Guest ranches.
- (13) Helicopter and Fixed Wing Aircraft Loading and Unloading
- (14) Hospitals.
- (15) Junk yards.
- (16) Medical/dental clinics.
- (17) Mobile homes.
- (18) Motels, hotels, lodges.
- (19) Multi-family dwelling units.
- (20) Offices.
- (21) Personal service outlets: food stores, drug stores, post office substation, self-service laundries, dry cleaning outlets and liquor stores; the total space shall be limited to eighty (80) square feet of gross leasable space per dwelling unit in the district.

- (22) Places for retailing of goods.
- (23) Professional offices.
- (24) Research facilities, indoors.
- (25) Research facilities, other.
- (26) Restaurants and bars.
- (27) Timesharing/fractional fees.
- (28) Uses not listed.
- (29) Vehicle and aircraft sales and service.

(e) Dimensional Requirements

The Unclassified zone district has the same dimensional requirements as the AR-10 zone district (Table 5-1).

*(Code repealed and reenacted (all sections) by [Ord. 014-D-2006, 07-05-2006](#)
Section 3-80-30 amended (in part) [Ord. 011-2022, 02-23-2022](#))*

3-80-40: AC/REC-2 (ACCOMMODATION/RECREATION)

(a) Intent

The AC/REC-2 (Accommodation/Recreation) zone district is intended to provide for resident and tourist housing nearby to skiing and other recreation areas.

(b) Allowed Uses

The following uses are allowed as of right in the Accommodation/Recreation (AC/REC-2) Zone District:

- (1) Accessory buildings and uses.
- (2) Bus stop.
- (3) Crop production.
- (4) Day care centers.
- (5) Duplex dwelling units.

- (6) Home occupations.
- (7) Multi-family dwelling units.
- (8) Manufactured home.
- (9) Parks, playgrounds, playing fields.
- (10) Single-family dwelling units.
- (11) Solar energy collectors (private use).
- (12) Trails.

(c) Special Review Uses

The following uses are subject to special review and may be permitted if found to be in support of allowed principal uses:

- (1) Agriculture stands.
- (2) Alpine ski areas and support.
- (3) Amusement and entertainment establishments.
- (4) Caretaker dwelling units.
- (5) Cemeteries.
- (6) Churches.
- (7) Club houses or recreational buildings used in connection with and accessory to a permitted outdoor recreational use.
- (8) Commercial automobile parking lots.
- (9) Commercial kennels and veterinary clinics.
- (10) Commercial riding stables.
- (11) Community health facilities.
- (12) Dormitory housing.
- (13) Farm buildings.

- (14) Golf courses.
- (15) Guest ranches.
- (16) Motel, hotels, lodges.
- (17) Nordic ski areas and support facilities.
- (18) Nursing, convalescent, rest, and retirement homes.
- (19) Outdoor recreational uses.
- (20) Personal service outlets: food stores, drug stores, post office substation, self-service laundries, dry cleaning outlets and liquor stores; the total space shall be limited to eighty (80) square feet of gross leasable space per dwelling unit in the district.
- (21) Places for retailing of goods (structures and businesses limited to twelve thousand (12,000) square feet of floor area per building).
- (22) Professional offices.
- (23) Radio transmitting station.
- (24) Resort cabins.
- (25) Restaurants and bars.
- (26) Satellite reception devices.
- (27) Schools/universities.
- (28) Sewage disposal areas/landfills/water plants.
- (29) Timesharing/fractional fees.
- (30) Transferable development rights (TDRs).
- (31) Uses, activities and facilities permitted by special use permit issued by Federal agencies.
- (32) Water crossing and diversion.

(d) Prohibited Uses

The following uses are prohibited in the Accommodation/Recreation (AC/REC-2) Zone District:

- (1) Airport.
- (2) Animal production and husbandry services, and other farm and agricultural uses.
- (3) Commercial camping areas.
- (4) Commercial firewood splitting, storage and sales.
- (5) Employee dwelling units.
- (6) Equipment supplies and contraction or subcontracting.
- (7) Essential government and public utility uses, facilities and services.
- (8) Financial institutions.
- ((9) General services.
- (10) Helicopter and Fixed Wing Aircraft Loading and Unloading
- (11) Hospitals.
- (12) Junk yards.
- (13) Logging.
- (14) Medical/dental clinics.
- (15) Mineral exploration/mining concrete batch plants.
- (16) Mobile homes.
- (17) Offices.
- (18) Research facilities, indoors.
- (19) Research facilities, other.
- (20) Uses not listed.
- (21) Vehicle and aircraft sales and service.

(e) Dimensional Requirements

The following dimensional requirements shall apply to all permitted and special review uses in the Accommodation/Recreation (AC/REC-2) Zone District:

(1) Minimum lot area:

- (a) Hotel/motel/lodge: two (2) acres.
- (b) All other: one (1) acre.

(2) Minimum Lot Area per Dwelling Unit:

- (a) Hotel motel lodge (HML): two thousand two hundred (2,200) square feet.
- (b) Multi-family (unlimited): five thousand five hundred (5,500) square feet.
- (c) Multi-family (one-bedroom limited): three thousand two hundred (3,200) square feet.
- (d) Multi-family (studio limited): two thousand five hundred (2,500) square feet.
- (e) Other: one (1) acre.

(3) Minimum usable open space per dwelling unit: one thousand two hundred (1,200) square feet.

(4) Minimum front yard setback: seventy-five feet (75').

(5) Minimum side yard setback: twenty feet (20').

(6) Minimum rear yard setback: twenty feet (20').

(7) Minimum lot width: one hundred feet (100').

(8) Maximum height principal structures: twenty-eight feet (28').

(9) Maximum height accessory structures: twenty feet (20').

(10) Maximum floor area ratio: .36.

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